DEVELOPMENT APPLICATION

ASSESSMENT REPORT

REPORT TITLE	26-30 McIntyre Street, Gordon - Alterations, additions and associated works to an approved residential flat building

APPLICATION NO	eDA0371/25
PROPERTY DETAILS	26 - 30 Mcintyre Street Gordon Lot C DP 348677 Lot 1 DP 525670 Lot 4 DP 525670 3,360.1m^2 (by survey) R4 High Density Residential
WARD	Gordon
PROPOSAL/PURPOSE	Alterations, additions and associated works to an approved residential flat building (amending Development Application to DA0038/23) under the provisions of SEPP (Housing) 2021
TYPE OF DEVELOPMENT	Local
APPLICANT	Mcintyre Development Pty Ltd
OWNER	Mcintyre Project Pty Ltd
DATE LODGED	4 August 2025
RECOMMENDATION	Refusal

PURPOSE OF REPORT

To determine development application No. eDA0371/25 for alterations, additions and associated works to an approved residential flat building (amending development application to DA0038/23) under the provisions of SEPP (Housing) 2021

The application is reported to the Ku-ring-gai Local Planning Panel in accordance with the Minister's Section 9.1 Local Planning Panels Direction, as it:

(a) is sensitive development to which Chapter 4 (Design of Residential Apartment Development) of SEPP (Housing) 2021 applies, and

(b) involves departures to a numerical development standard of more than 10%.

INTEGRATED PLANNING AND REPORTING

Places, Spaces & Infrastructure

Community Strategic Plan **Long Term Objective**	**Delivery Program** **Term Achievement**	**Operational Plan** **Task**
P2.1 A robust planning framework is in place to deliver quality design outcomes and maintain the identity and character of Ku-ring-gai.	Applications are assessed in accordance with state and local plans.	Assessments are of a high quality, accurate and consider all relevant legislative requirements.

EXECUTIVE SUMMARY

Issues

Non-compliant gross floor area

Building height and inadequate Clause 4.6 request

Desired future character

Solar access

Communal open space

Building separation

Privacy

Design of building entry

Amenity of living rooms and balconies

Internalisation of corridors

Façade articulation

Top storey floor area and setbacks

Integration of services

	Non-compliance with design principles Affordable housing Accessibility Site coverage and deep soil BASIX certificate Insufficient ecological assessment Inadequate information
Submissions	3 submissions
Land and Environment Court	Yes – Deemed refusal
Recommendation	Refusal

HISTORY

Site history

The site has a history of low-density residential use.

Previous applications history

A Pre-DA consultation was not undertaken with Council for the proposed development.

Council's records show previous relevant applications as follows:

Type	Application	Description	Decision	Date
DA	DA0038/23	Demolition of existing structures and construction of two residential flat buildings containing 31 units over two levels of basement parking and associated civil and landscaping works	LEC Approval	03/02/2023
eMOD	eMOD0078/24	Modification to Land and Environment Court Consent No. 100715 of 2023 (DA0038/23) proposing layout changes to basement levels, an increase of one apartment from 31 to 32 apartments, layout and design changes to some apartments, changes to the proportions of some communal open space areas, provision of additional rooftop private open space areas and building envelope changes	LEC Approval	22/07/2024

Current Development Application History

Date	Action
7/08/2025	eDA0371/25 was lodged with the Council.
18/08/2025	eDA0371/25 was notified in accordance with the Ku-ring-gai Community Participation Plan. One submission objecting to the proposal was received.
21/08/2025	Applicant was asked to clarify the proposed works because the application was lodged as an amending DA, however the documents submitted with the development application such as the cost of works and plans, were for the whole development, which included the previously approved development (DA0038/23).
29/08/2025	Additional information was received clarifying the proposed development including: • compliance schedule comparing the approved and proposed works. • comparison plans and elevations • amended Estimated Development Cost Report

	• amended portal form
10/09/2025	The application was renotified to neighbouring properties in accordance with the Ku-ring-gai Community Participation Plan. Two further submissions of objection were received.
26/09/2025	The Applicant filed a Class 1 Application with the Land and Environment Court of NSW against the deemed refusal of the DA.

Land and Environment Court appeal history

DA0038/23 - *McIntyre Development Pty Ltd v Ku-ring-gai Council 2023/00100715* was for the demolition of existing structures and construction of two residential flat buildings containing 31 units over two levels of basement parking and associated civil and landscaping works was approved by way of S34 agreement.

eMOD0078/24 - *McIntyre Development Pty Ltd v Ku-ring-gai Council 2024/375019* sought the deletion of basement level 4, layout changes to other basement levels, an increase of one unit from 31 to 32 units, layout and design changes to some apartments, changes to the proportions of some communal open space areas, provision of additional rooftop private open space areas and building envelope changes was approved by way of S34 agreement.

eDA0371/25 - There is a current Class 1 appeal against the deemed refusal of the subject development application, which was filed with the Land and Environment Court (Court) on 19 September 2025. The Statement of Facts and Contentions (SOFAC) was filed with the Court on 14/11/2025 **(Attachment A9)**.

THE SITE

Site description

The site comprises 3 lots, which are described below and shown in **Figure 1**:

26 McIntyre Street (Lot 4, DP 525670)

- This is a battle-axe allotment with a brick dwelling of one to two storeys.
- The site includes an informal garden with a large tree near the western boundary and a sizeable vehicle manoeuvring area in front of the house.

28 McIntyre Street (Lot 1, DP 525670)

- This lot fronts McIntyre Street and contains a brick dwelling of one to two storeys.
- It also includes a single-car garage.

30 McIntyre Street (Lot C, DP 348677)

- This lot fronts McIntyre Street and contains a brick dwelling of one to two storeys.
- A single-car garage is located within the western side setback.

The site is ‘L’ shaped with a northern frontage of 37.295 metres to McIntyre Street, a site depth along the western boundary of 68.360 metres, a rear boundary length of 73.84 metres, an eastern boundary length towards the rear of 22.185 metres, a return boundary length parallel to the street frontage of 36.575 metres, and an eastern boundary length towards the street frontage of 46.205 metres. The three lots comprise a combined site area of 3,360.1m^2 and has numerous cross falls, with an overall fall from its north-eastern to south-western corner of approximately 10.81 metres (14%).

The rear of the site forms a part of a watercourse which is predominantly located on 23-35, 27 and 29-33 Dumaresq Street. The watercourse flows into Blackbutt Creek to the west adjacent to Vale Street. Refer to Ku-ring-gai Local Environmental Plan 2015 (**KLEP**) Riparian Lands and Watercourse Map at (**Figure 2).**

The native vegetation existing at the rear of the site was determined to be representative of the Blue Gum High Forest (BGHF), which is listed as a Critically Endangered Ecological Community (CEEC) under the *Biodiversity Conservation Act 2016* (BC Act). The existing BGHF within the site has been mapped as an area of "biodiversity significance" under KLEP. The site is vegetated with a variety of endemic and exotic species.

Figure 1: Aerial photograph of the Site and surrounding area.

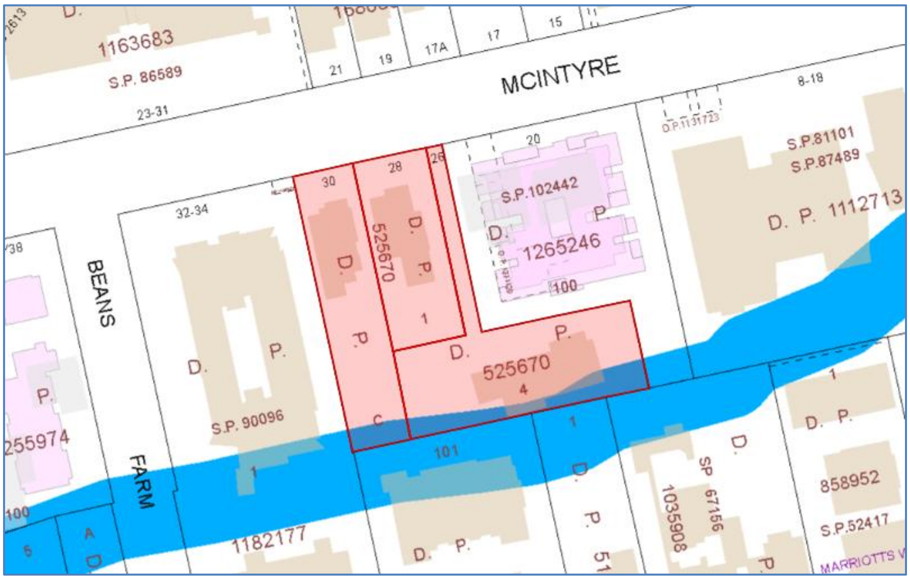

Figure 2: LEP Riparian lands and watercourse map

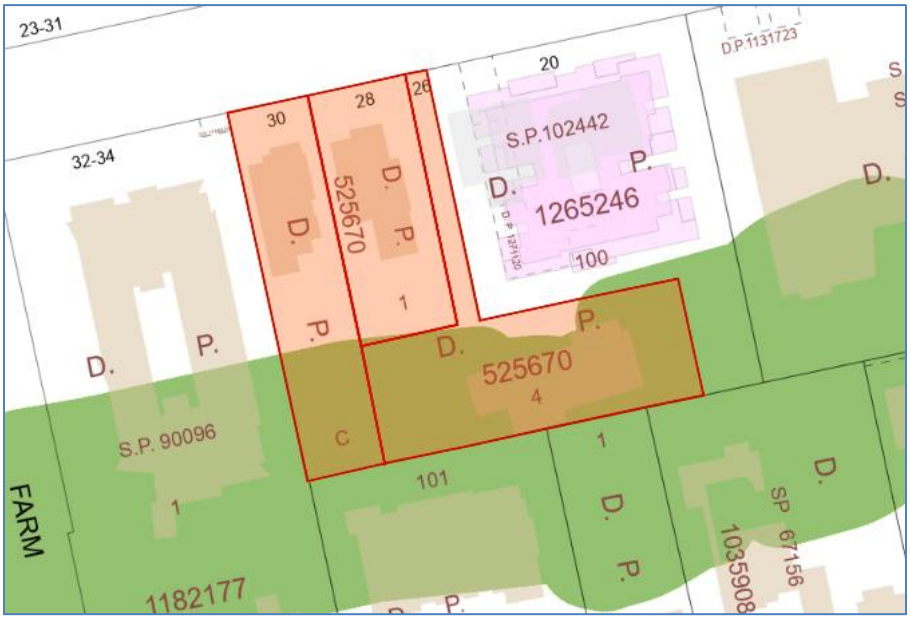

Figure 3: LEP Natural Resources biodiversity

Constraint:	Application:
Visual character study category	Not categorised on map.
Easements/rights of way	No
Heritage Item - Local	No
Heritage Item - State	No
Heritage conservation area	No
Within 100m of a heritage item	No
Bush fire prone land	No
Natural Resources Biodiversity	Yes
Natural Resources Greenweb	Yes
Natural Resources Riparian	Yes

Within 25m of Urban Bushland	No
Contaminated land	No

Surrounding development

The local area in the vicinity of the site is primarily characterised as a high-density residential development. The site is within 140 metres of land mapped as 'Town Centre' and 620 metres from Gordon Railway Station.

Development adjoining the site to the east at 20 McIntyre Street comprises a recently completed residential flat building.

North of the site consists of low-density residential dwellings and a range of residential flat buildings.

To the south and immediately adjacent to the rear portion of the site, is a 5 storeys residential flat building at 29-31 Dumaresq Street, a dwelling house at 27 Dumaresq Street, and a seniors housing development at 23-25 Dumaresq Street.

Development adjoining the site to the west comprises residential flat buildings on land at 32-34 McIntyre Street.

Strategic context:

The site is not located within a Transport Oriented Development (TOD) Area pursuant to Ku-ring-gai Council Local Environmental Plan (Housing) (Map Amendment No. 1) which was made on 11 June 2025.

Council's Alternative TOD Plan was published on the NSW Legislation website on 14/11/2025. The alternate envisages a future character which permits a maximum building height of 29 metres and FSR of 1.8:1.

Figure 4: Zoning (Draft LEP Maps issued by DPHI TOD Alternate)

Figure 5: Building height 29m (Draft LEP Maps issued by DPHI TOD Alternate)

Figure 6: FSR 1.8:1 (Draft LEP Maps issued by DPHI TOD Alternate)

Figure 6: Draft Low and Mid Rise Exclusion Area (Draft LEP Maps issued by DPHI TOD Alternate

THE PROPOSAL

The application seeks consent for alterations, additions and associated works to an approved residential flat building (an amending Development Application to DA0038/23) under the provisions of SEPP (Housing) 2021 on land at 26-30 McIntyre Street, Gordon.

Specifically, the application seeks to amend the approved development. The following comparison table has been provided by the applicant **(Figure 6).** Council disputes the calculation of GFA/FSR, site coverage and deep soil.

DEVELOPMENT SCHEDULE COMPARISON 26-30 Mcintyre St Gordon			
	Approved S34	**Proposed**	***Difference***
GFA *(including basement car park area)*	4938.26 sqm	9114.10 sqm	*4175.84 sqm*
FSR *(including basement car park area)*	1.47 : 1	2.712 : 1	*1.242*
Total Units	32	53 *inclusive of 8 Affordable Units*	*21 Units*
Unit Mix	1 Bed - 1 2 Bed - 1 3 Bed - 28 4 Bed - 2	1 Bed - 1 2 Bed - 1 3 Bed - 45 4 Bed - 6	*3 Bed - 17* *4 Bed - 4*
Communal Open Space	1841.52 sqm (54.8%)	1767.7 sqm (52.6%)	*- 73.82 sqm*
Site Coverage	1283.2 sqm (38.2%)	1417.7 sqm (42.2%)	*134.5 sqm*
Solar Access	26 out of 32 Units (81%)	37 out of 53 Units (70%)	*-11%*
Cross Ventilation	31 out of 32 Units (96.9%)	52 out of 53 Units (98.1%)	*1.20%*
Deep Soil	1684.7 (50.1%)	1572.7 sqm (46.8%)	*- 112 sqm*
Levels	5 Storey with 4 Level Basement	8 Storey with 4 Level Basement	*3 Storey*
Car Parking	*69 Residential* *6 Visitor* *1 Car Wash Bay* *1 Car share* **TOTAL = 77 Car Spaces**	*92 Residential* *9 Visitor* *1 Car Wash Bay* *1 Car share* **TOTAL = 103 Car Spaces**	*26 spaces*

Figure 6: Development schedule comparison (prepared by applicant)

A summary of the proposed development is detailed below:

- *Basement Levels (B4–B1):*
    - Total of 99 car parking spaces, 1 car-share space, storage cages, bicycle parking, and waste/recycling facilities.
    - Three affordable housing units located on B1 and B2 (1 x 1-bedroom, 1 x 2-bedroom, and 1 x 3-bedroom).
- *Ground Level:*
    - 8 residential units (5 market and 3 affordable), all 3-bedroom.
- *Upper Levels:*
    - Levels 1–7 comprise a mix of market and affordable units, primarily 3-bedroom, with some 4-bedroom units and maisonettes.
    - Communal open space provided on Level 6.
- *Roof Level:*
    - Plant equipment and condensers.
- *Overall Proposal:*
    - 21 additional dwellings, including 8 affordable housing units.

- Increase of 4,175.84 m² GFA, with minor reductions in communal open space (–74 m²) and deep soil planting (–112 m²), and an increase in site coverage (+134.5 m²).
- Building height increases from 5 storeys to 8 storeys.

CONSULTATION

Community

In accordance with Appendix 1 of the Ku-ring-gai Community Participation Plan, owners of surrounding properties were given notice of the application. In response, a submission from the following were received.

1. *A Gorfin, 19/8-18 McIntyre Street, Gordon*

The submission raised the following issues:

Traffic concerns

Concern is raised in relation to increased traffic flows and impacts on the road network from the development in conjunction with existing and future surrounding developments along with traffic delays and safety.

Adequate on-site car parking is provided. According to Transport for NSW's *Guide to Transport Impact Assessment (GTIA) 2024*, high-density residential developments within 800 metres of a railway station generate approximately 0.19 vehicle trips per dwelling during the morning peak hour and 0.15 trips during the evening peak hour.

For the proposed 53 dwellings, this equates to around 8 trips in the morning peak and 6 trips in the evening peak. In practical terms, this represents approximately one additional vehicle movement every 7–10 minutes during peak periods. This level of traffic is considered minor and is expected to have minimal and acceptable impact on the surrounding road network.

Amended Plans received 29/8/2025

The amended plans were also notified. Submissions from the following were received:

1. *M Abdelgadir, 17/32-34 McIntyre Street, Gordon*
2. *J Li, (address not provided)*

The submissions raised the following additional issues:

Impacts to street parking during construction

On-street parking is generally permitted unless specific restrictions apply. While some construction-related impacts are unavoidable, if the development were approved, a Construction Traffic Management Plan will be required to ensure construction traffic is appropriately managed and disruptions are minimised.

Acoustic impacts

Concern was raised regarding the acoustic impacts from this development including during construction.

The application did include an acoustic report, however the report appears to relate to a previous set of plans. This concern forms part of reason for refusal 14.

In relation to acoustic impacts during construction, such impacts are inherent, however in the event of an approval conditions of consent would be included to minimise impacts to an acceptable level.

Dust impacts during construction

Conditions of consent are included in DA0038/23 to minimise dust impacts during construction. A similar condition would be recommended if the application were to be approved.

Impacts to footpath and safety

Concerns have been raised regarding the public's ability to use footpaths during construction. If the application were to be approved, conditions of consent could be included in relation pedestrian safety and access.

Blockages to McIntyre Street during construction

Condition 6 of DA0038/23 requires a construction management plan to be approved by Council prior to the commencement of works. If the application were to be approved, a similar condition could be included.

Increased density

The proposed development lacks clarity regarding its proposed density, particularly the Floor Space Ratio (FSR), which underpins reason for refusal 6. Further concerns relate to the built form, including excessive building height, inadequate building separation, loss of deep soil areas, poor articulation, and insufficient integration of service components. These issues are reflected in reasons for refusal 3, 5, and 8.

Lack of infrastructure to support increased density

The planning controls do not require the provision of off-site supporting infrastructure. If the application was to be approved, development contributions would be applicable, which would assist with the provision of local services and infrastructure.

Internal Referrals

Urban design

Council's Urban Design Consultant has assessed the proposed development and identified several design concerns. These include:

- *Solar Access*: Impacts on neighbouring properties, affordable housing units, and communal open space.
- *Future Development Constraints*: Potential limitations on adjoining sites.
- *Amenity and Design Issues*: Inequitable access to communal spaces, inadequate building separation, insufficient window screening, internalised and narrow circulation corridors, excessive site coverage, and inadequate deep soil landscaping.
- *Architectural and Functional Concerns*: Poor façade articulation, non-compliant top storey gross floor area and setbacks for Building A, balcony screening, street frontage definition, undersized primary balconies, and inappropriate location of external clothes drying areas.
- *Specific Non-Compliances*: Corridor width for Unit A601, central entry ramp width for Building A, and integration of the southern mechanical plant room.

It is agreed that these are unacceptable impacts, consequently these issues form part of the recommended reasons for refusal of the application.

Landscaping

Council's Senior Landscape and Tree Assessment Officer reviewed the proposal and raised concerns with minimum landscape and deep soil provisions and inconsistent BASIX certificate information. It is agreed, that these issues are unacceptable, consequently they form recommended reasons for refusal.

Engineering

Council's Senior Development Engineer reviewed the proposal and has raised no objections to the development, subject to the inclusion of standard conditions to ensure the management of the site and stormwater, dilapidation reporting, traffic management and construction details. Concurrence is given to this assessment subject to conditions if the application were to be approved.

Ecology

The Council's Ecological Assessment Officer has reviewed the proposal.

The application proposes the removal of T28 a hybrid *Eucalyptus saligna x botryoides* which corresponds with Blue Gum High Forest, a Critically Endangered Ecological Community (CEEC) under the Biodiversity Conservation Act (BC Act). Two key issues have been identified: an ecological impact assessment (commonly referred to as the five-part test) and biodiversity assessment report (BAR) have not been provided.

Further, the submitted landscape plan does not comply with Part 17.4 – Category 3 Bed and Bank Stability of the Development Control Plan (DCP).

It is agreed that these issues are significant and consequently form part of the recommended reasons for refusal.

Health

Council's Environmental Health Officer has reviewed the proposed development and raised concerns with inadequate information in relation to acoustic impacts. It is agreed there is insufficient information in this regard, consequently it forms a reason for refusal 14.

Building

Council's Building Surveyor reviewed the proposal who was supportive subject to conditions. It is agreed that standard conditions addressing fire safety and compliance with the National Construction Code (NCC) are appropriate should the application be approved.

External Referrals

External referrals were not required.

STATUTORY PROVISIONS

State Environmental Planning Policy (Resilience and Hazards) 2021 - Chapter 4 Remediation of land

The provisions of Chapter 4 require Council to consider the potential for a site to be contaminated. The subject site has a history of residential use and as such, it is unlikely to contain any contamination, and further investigation is not warranted in this case.

Draft State Environmental Planning Policy (Remediation of Land)

The draft SEPP is a relevant matter for consideration as it is an Environmental Planning Instrument that has been placed on exhibition. New provisions will be added in the SEPP to:

- *require all remediation work that is to be carried out without development consent, to be reviewed and certified by a certified contaminated land consultant*
- *categorise remediation work based on the scale, risk and complexity of the work*
- *require environmental management plans relating to post-remediation management of sites or ongoing operation, maintenance and management of on-site remediation measures (such as a containment cell) to be provided to Council*

The site is unlikely to contain contamination, and further investigation is not warranted in this case.

State Environmental Planning Policy (Sustainable Buildings) 2022 – Chapter 2 Standards for residential development – BASIX

A valid BASIX certificate has been submitted. The proposal is inconsistent with commitments identified in the certificate and form part of the recommended reasons for refusal 9.

State Environmental Planning Policy (Housing) 2021

SEPP Housing contains several principles including the promotion of the planning and delivery of housing in locations where it will make good use of existing and planned infrastructure and services.

The subject application seeks development consent for a residential flat building on land that is zoned R4 High Density Residential. The site is within the 'low and mid rise inner area', as mapped under this policy because it is within 400 metres of a Town Centre on the Town Centre Map, as defined in Chapter 6. The subject application seeks to provide in-fill affordable housing under Chapter 2 of the SEPP Housing.

The relevant sections of Chapters 2, 4 and 6 of SEPP Housing are considered below:

<u>Chapter 2 – Affordable housing</u>

The subject application proposes a residential flat building. Residential flat buildings are permitted on the site under Schedule 1 of KLEP and Chapter 6 of SEPP Housing. The affordable housing component of the development is 10% of the overall proposed units, which satisfies Section 15C of SEPP Housing. Although, as required in Section 21, the applicant has not committed to ensuring the affordable housing component will be managed by a registered community housing provider. This issue forms recommended reason for refusal 13.

The affordable housing requirements for additional FSR and building height as well other non-discretionary development standards and design requirements are discussed in the table below:

Development standard	Proposed	Complies
S 16 (1) - Affordable housing requirements for additional floor space ratio **Maximum permissible floor space -** 2.2:1 plus additional 30% (based on minimum affordable housing component) $\text{affordable housing component} = \dfrac{\text{additional floor space ratio}}{\text{(as a percentage)}} \div 2$	The proposal is subject to a maximum FSR of 2.2:1 and the proposed FSR is 2.71:1.	**NO**
S 16 (3) – Maximum permissible building height Maximum permissible building height (RFB_ - 22 metres plus same % as the additional	The proposal is subject to a maximum building height of 22 metres	**NO**

Development standard	Proposed	Complies
floor space permitted under (1)	and the proposed height is 30.48 metres.	
S 19 - Non-discretionary development standards—the Act, s 4.15		
Site area – 450m^2 (minimum)	Site area is 3,360.1m^2.	**YES**
Minimum landscape area, the lesser of – (i) 35m^2 per dwelling, or (ii) 30% of the site area, The lesser requirement is: 30% landscape area = 1008.3m^2	The proposal provides a landscaped area of 1,572m^2.	**YES**
Car parking		
Number of parking spaces for dwellings <u>used for affordable housing</u>— (i) for each dwelling containing 1 bedroom—at least 0.4 parking spaces, (ii) for each dwelling containing 2 bedrooms—at least 0.5 parking spaces, (iii) for each dwelling containing at least 3 bedrooms— at least 1 parking space, **(6.9 spaces)** **Number of parking spaces for dwellings <u>not used for affordable housing</u> –** (i) for each dwelling containing 1 bedroom—at least 0.5 parking spaces, (ii) for each dwelling containing 2 bedrooms—at least 1 parking space, (iii) for each dwelling containing at least 3 bedrooms—at least 1.5 parking spaces, **(67.5 spaces)**	98 residential car parking spaces comprising: - 90 residential spaces and - 8 affordable housing spaces. The development also proposes: - 9 visitor spaces - 1 car share bay - 1 shared removalist / car wash / visitors and - 1 garbage truck bay, which is acceptable. 1 visitor parking space is provided as an accessible parking space.	**YES**
Minimum internal area – as per ADG	See ADG table.	**YES**
S 20 – Design requirements The design of the residential development is compatible with –	The design of the development is not compatible with the character of the	**NO**

Development standard	Proposed	Complies
(a) the desirable elements of the character of the local area, or (b) for precincts undergoing transition—the desired future character of the precinct.	local character or desired local character.	
S 21 - Must be used for affordable housing for at least 15 years If providing affordable housing component under sections 16, or 18 it must be demonstrated that the affordable housing component will be managed by a registered community housing provider	Refer to Chapter 2, Sections 16-18 above. Details of a registered housing provider have been provided, however, there is no commitment that the affordable housing component will be managed by this provider.	**NO**

Floor space ratio

The site has a FSR of 2.2:1 (7,392 m² GFA), with potential uplift under Sections 16 and 18 of the SEPP Housing. Under Section 16(1), an additional 30% GFA may be permitted, allowing a maximum FSR of 2.86:1 (9,609.88 m² GFA), provided 15% (1,441.48 m²) of the total GFA is dedicated to affordable housing.

The application claims:

- Total GFA: 9,114.1 m² (FSR 2.71:1), representing a 23.29% increase above the FSR.
- Affordable Housing GFA – conflicting information:
    - 872.9 m² (as detailed in the compliance schedule and Clause 4.6 request)
    - 887 m² (as detailed in the Statement of Environmental Effects)

The figures equate to either 9.5 or 9.7% of total GFA, which is below the minimum 10% required under Section 16(2). The error appears to stem from referencing residential GFA instead of total GFA in the applicant's calculations.

In addition to the above, further clarification is required as internal walls and walls enclosing stairs and lifts appear not to have been included in the GFA calculation, which may affect the affordable housing requirement.

The proposal does not comply with the FSR development standard, and no Clause 4.6 variation request has been provided to justify the non-compliance.

Building height

Under the provisions of Section 16(3) an additional building height of up to 30% (6.6 metres), resulting in a maximum building height of 28.6 metres could be sought if at least 15% of the total GFA was affordable housing. The proposal is not subject to the uplift provisions as, contrary to Section 16(2), the affordable housing component is less than 10% of the total GFA.

The Clause 4.6 Exceptions to development standards states the building has a maximum height of 30.48 metres, being a breach of 4.08 metres. It further notes that the maximum building height permitted is 26.4 metres (which includes the additional 20%). The height plane diagram suggests the maximum breach as 3.03 metres.

A Clause 4.6 Exceptions to development standards has been provided to support the variation, which has been considered below.

<u>Chapter 4 – Design of residential apartment development</u>

The proposed development does not achieve the aims of this chapter because of the unsatisfactory built form, the building's aesthetics and consequential detrimental streetscape impacts.

Consideration is given below to the quality of the design of the residential apartment development when evaluated in accordance with the design principles set out in Schedule 9 of SEPP Housing –

1 Context and neighbourhood character

The proposed development does not appropriately respond to context, as detailed by Council's Urban Design Consultant and outlined in reason for refusal 3.

2 Built form and scale

The proposed development does not provide adequate building separation, which compromises the ability to achieve equitable separation with the adjoining sites. Furthermore, the built form lacks sufficient articulation. The proposal increases both height and gross floor area while removing key articulation design elements particularly to the façade of Building B, which presents an unbroken 33 metres wall height extending from ground level to Level 6. The proposed height is non-compliant, which creates amenity impacts and is not supported by a well-founded Clause 4.6 Exceptions to development standards request.

5 Landscape

The Apartment Design Guide (ADG) specifies on large sites 15% of the site should be provided as deep soil. The application is compliant with the ADG deep soil requirements.

The DCP specifies the site should accommodate 50% deep soil. It is noted that the previously approved modification eMOD0078/24 was approved at 48% (1612.6m^2).

The deep soil plan indicates 1,572.8 m² (46.8% of the site area). However, several areas totalling 54.3m² should be excluded, reducing the actual deep soil provision to approximately 1,540.5 m² (45.8%). The reduction in deep soil landscaping is partly result of the ground floor level units AG01 to AG03 to the east, extending beyond the basement into deep soil area within the 6 metres setback line and the fire stairs to Building B also extending past basement.

As a result of the reduction, there is insufficient landscaped area and deep soil zone to provide consolidated deep soil zones which restricts growth of vegetation. Given the increase in height and bulk of the building adequate deep soil area is required to assist in integrating the built form into the landscaped character of the area and maintaining the amenity of properties adjoining the site.

6 Amenity

The proposed development fails to provide adequate separation between Buildings A and B, compromising residential amenity. Access to communal open space for Building B is inequitable, and solar access to this space is insufficient. The placement of windows adjoining the communal open space further detracts from its usability.

The development also does not comply with minimum building separation requirements, a deficiency compounded by inadequate deep soil landscaping. Privacy impacts on adjoining developments remain unresolved.

Additionally, the proposal significantly reduces solar access to neighbouring properties at No. 29–33 Dumaresq Street, solar access decreases to 19 of 35 units (54%), and at No. 35–39 Dumaresq Street, it drops to 24 of 40 units (60%). These reductions are inconsistent with ADG 3B.2 objectives (1), (2), (4), and (5).

Insufficient information has been provided to determine the acoustic impacts.

7 Safety

The proposed development is considered to meet the criteria of Principle 7.

8 Housing diversity and social interaction

The proposed development includes a mix of apartment types and a suitable area of communal open space which will facilitate social interaction.

9 Aesthetics

The eastern, western and southern elevations include areas of blank walls which impact negatively on the streetscape and on visual residential amenity. Further, the development relies on the use of louvred screens on the edges of the building to obscure services which are not integrated into the design, which is a poor design response.

Apartment Design Guide

Pursuant to Section 147 of SEPP Housing in determining a development application for a residential flat building the consent authority is to take into consideration the Apartment Design Guide (ADG). The following table is an assessment of the proposal against the guidelines provided in the ADG.

ADG COMPLIANCE TABLE	
Guideline	**Compliance**
Objective 3A-1 Site analysis illustrates that design decisions have been based on opportunities and constraints of the site conditions and their relationship to the surrounding context.	**NO**
Objective 3B-1 Building types and layouts respond to the streetscape and site while optimising solar access within the development.	**NO**
Objective 3B-2 Overshadowing of neighbouring properties is minimised during mid-winter.	**NO**
Objective 3C-1 Transition between private and public domain is achieved without compromising safety and security.	**YES**
Objective 3C-2 Amenity of the public domain is retained and enhanced.	**NO**
Objective 3D-1 An adequate area of communal open space is provided to enhance residential amenity and to provide opportunities for landscaping.	**NO**
Design criteria	
1. Communal open space has a minimum area equal to 25% of the site (see figure 3D.1) Where developments are unable to achieve the design criteria, such as on small lots, sites within business zones, or in a dense urban area, they should: • provide communal spaces elsewhere such as a landscaped roof top terrace or a common room • provide larger balconies or increased private open space for apartments • demonstrate good proximity to public open space and facilities and/or provide contributions to public open space. 2. Developments achieve a minimum of 50% direct sunlight to the principal usable part of the communal open space for a minimum of 2 hours between 9 am and 3 pm on 21 June (mid-winter).	**YES**

ADG COMPLIANCE TABLE	
Guideline	**Compliance**
Objective 3D-2 Communal open space is designed to allow for a range of activities, respond to site conditions and be attractive and inviting.	**YES**
Objective 3D-3 Communal open space is designed to maximise safety.	**YES**
Objective 3D-4 Public open space, where provided, is responsive to the existing pattern and uses of the neighbourhood.	**YES**
Objective 3E-1 Deep soil zones provide areas on the site that allow for and support healthy plant and tree growth. They improve residential amenity and promote management of water and air quality.	**NO**
Design criteria	
Deep soil zones are to meet the following minimum requirements: **Site area** / **Minimum dimensions** / **Deep soil zone (% of site area)** greater than 1,500m^2 with significant existing tree cover / 6m / 15%	**YES**
Objective 3F-1 Adequate building separation distances are shared equitably between neighbouring sites, to achieve reasonable levels of external and internal visual privacy.	**NO**

ADG COMPLIANCE TABLE	
Guideline	**Compliance**
Design criteria	
Separation between windows and balconies is provided to ensure visual privacy is achieved. Minimum required separation distances from buildings to the side and rear boundaries are as follows: **Building height** / **Habitable rooms and balconies** / **Non-habitable rooms** up to 12m (4 storeys) / 6m / 3m up to 25m (5-8 storeys) / 9m / 4.5m over 25m (9+ storeys) / 12m / 6m **Note:** Separation distances between buildings on the same site should combine required building separations depending on the type of room (see figure 3F.2) Gallery access circulation should be treated as habitable space when measuring privacy separation distances between neighbouring properties.	**NO**
Objective 3F-2 Site and building design elements increase privacy without compromising access to light and air and balance outlook and views from habitable rooms and private open space.	**NO**
Objective 3G-1 Building entries and pedestrian access connects to and addresses the public domain.	**NO**
Objective 3G-2 Access, entries and pathways are accessible and easy to identify.	**NO**
Objective 3H-1 Vehicle access points are designed and located to achieve safety, minimise conflicts between pedestrians and vehicles and create high quality streetscapes.	**YES**

ADG COMPLIANCE TABLE	
Guideline	**Compliance**
Design guidance	
Car park access should be integrated with the building's overall facade. Design solutions may include: • the materials and colour palette to minimise visibility from the street • security doors or gates at entries that minimise voids in the facade • where doors are not provided, the visible interior reflects the facade design and the building services, pipes and ducts are concealed	**YES**
Objective 3J-1 1. Car parking is provided based on proximity to public transport in metropolitan Sydney and centres in regional areas.	**YES**
Design criteria	
1. For development on sites that are within 800 metres of a railway station or light rail stop in the Sydney Metropolitan Area the minimum car parking requirement for residents and visitors is set out in the Guide to Traffic Generating Developments, or the car parking requirement prescribed by the relevant council, whichever is less. The car parking needs for a development must be provided off street.	**YES**
Objective 3J-2 Parking and facilities are provided for other modes of transport.	**YES**
Objective 3J-3 Car park design and access is safe and secure.	**YES**
Objective 3J-4 Visual and environmental impacts of underground car parking are minimised.	**YES**
Objective 4A-1 To optimise the number of apartments receiving sunlight to habitable rooms, primary windows and private open space.	**YES**
Design criteria	
1 Living rooms and private open spaces of at least 70% of apartments in a building receive a minimum of 2 hours direct sunlight between 9 am and 3 pm at mid-winter in the Sydney Metropolitan Area and in the Newcastle and Wollongong local government areas. 2 In all other areas, living rooms and private open spaces of at least 70% of apartments in a building receive a minimum of 3 hours direct sunlight between 9 am and 3 pm at mid-winter. 3 A maximum of 15% of apartments in a building receive no direct sunlight between 9 am and 3 pm at mid-winter.	**YES**

ADG COMPLIANCE TABLE	
Guideline	**Compliance**
Objective 4A-2 Daylight access is maximised where sunlight is limited.	**YES**
Objective 4A-3 Design incorporates shading and glare control, particularly for warmer months.	**YES**
Objective 4B-1 All habitable rooms are naturally ventilated.	**YES**
Objective 4B-2 The layout and design of single aspect apartments maximises natural ventilation.	**YES**
Objective 4B-3 The number of apartments with natural cross ventilation is maximised to create a comfortable indoor environment for residents.	**YES**
Design criteria	
1 At least 60% of apartments are naturally cross ventilated in the first nine storeys of the building. Apartments at ten storeys or greater are deemed to be cross ventilated only if any enclosure of the balconies at these levels allows adequate natural ventilation and cannot be fully enclosed. 2 Overall depth of a cross-over or cross-through apartment does not exceed 18 metres, measured glass line to glass line.	**YES**
Objective 4C-1 Ceiling height achieves sufficient natural ventilation and daylight access.	**YES**
Design criteria	
Measured from finished floor level to finished ceiling level, minimum ceiling heights are: **Minimum ceiling height for apartment and mixed use buildings** Habitable rooms: 2.7 metres Non-habitable: 2.4 metres For 2 storey apartments: 2.7 metres for main living area floor; 2.4 metres for second floor, where its area does not exceed 50% of the apartment area Attic spaces: 1.8 metres at edge of room with a 30 degrees minimum ceiling slope If located in mixed used areas: 3.3 metres for ground and first floor to promote future flexibility of use	**YES**
Objective 4C-2 Ceiling height increases the sense of space in apartments and provides for well-proportioned rooms.	**YES**

ADG COMPLIANCE TABLE	
Guideline	**Compliance**
Objective 4C-3 Ceiling heights contribute to the flexibility of building use over the life of the building.	**YES**
Objective 4D-1 The layout of rooms within an apartment is functional, well organised and provides a high standard of amenity.	**YES**
Design criteria	
Apartments are required to have the following minimum internal areas: **Apartment type** — **Minimum internal area** Studio — $35m^2$ 1 bedroom — $50m^2$ 2 bedroom — $70m^2$ 3 bedroom — $90m^2$ The minimum internal areas include only one bathroom. Additional bathrooms increase the minimum internal area by $5m^2$ each. A fourth bedroom and further additional bedrooms increase the minimum internal area by $12m^2$ each. Every habitable room must have a window in an external wall with a total minimum glass area of not less than 10% of the floor area of the room. Daylight and air may not be borrowed from other rooms.	**YES**
Objective 4D-2 Environmental performance of the apartment is maximised.	**YES**
Design criteria	
1 Habitable room depths are limited to a maximum of 2.5 x the ceiling height. 2 In open plan layouts (where the living, dining and kitchen are combined) the maximum habitable room depth is 8m from a window.	**YES** **NO**
Objective 4D-3 Apartment layouts are designed to accommodate a variety of household activities and needs.	**YES**

ADG COMPLIANCE TABLE	
Guideline	**Compliance**
Design criteria	
1 Master bedrooms have a minimum area of $10m^2$ and other bedrooms $9m^2$ (excluding wardrobe space). 2 Bedrooms have a minimum dimension of 3m (excluding wardrobe space). 3 Living rooms or combined living/dining rooms have a minimum width of: • 3.6 metres for studio and 1 bedroom apartments • 4 metres for 2 and 3 bedrooms apartments 4 The width of cross-over or cross-through apartments are at least 4m internally to avoid deep narrow apartment layouts.	**YES**
Objective 4E-1 Apartments provide appropriately sized private open space and balconies to enhance residential amenity.	**NO**
Design criteria	
All apartments are required to have primary balconies as follows: **Dwelling type** / **Minimum area** / **Minimum depth** Studio apartments / $4m^2$ / - 1 bedroom apartments / $8m^2$ / 2 metres 2 bedrooms apartments / $10m^2$ / 2 metres 3+ bedrooms apartments / $12m^2$ / 2.4 metres The minimum balcony depth to be counted as contributing to the balcony area is 1m / / Balconies width 2 metres For apartments at ground level or on a podium or similar structure, a private open space is provided instead of a balcony. It must have a minimum area of $15m^2$ and a minimum depth of 3 metres.	**NO**
Objective 4E-2 Primary private open space and balconies are appropriately located to enhance liveability for residents.	**NO**
Objective 4E-3 Private open space and balcony design is integrated into and contributes to the overall architectural form and detail of the building.	**NO**
Objective 4E-4 Private open space and balcony design maximises safety.	**YES**
Objective 4F-1 Common circulation spaces achieve good amenity and properly service the number of apartments.	**NO**

ADG COMPLIANCE TABLE	
Guideline	**Compliance**
Design criteria	
1. The maximum number of apartments off a circulation core on a single level is eight. 2. For buildings of 10 storeys and over, the maximum number of apartments sharing a single lift is 40.	**YES**
Objective 4F-2 Common circulation spaces promote safety and provide for social interaction between residents.	**NO**
Objective 4G-1 Adequate, well-designed storage is provided in each apartment.	**YES**
Design criteria	
In addition to storage in kitchens, bathrooms and bedrooms, the following storage is provided: **Dwelling type** — **Storage size volume** Studio apartments — $4m^3$ 1 bedroom apartments — $6m^3$ 2 bedroom apartments — $8m^3$ 3+ bedroom apartments — $10m^3$ At least 50% of the required storage is to be located within the apartment.	**YES**
Objective 4G-2 Additional storage is conveniently located, accessible and nominated for individual apartments.	**YES**
Objective 4H-1 Noise transfer is minimised through the siting of buildings and building layout.	**YES**
Objective 4H-2 Noise impacts are mitigated within apartments through layout and acoustic treatments.	**YES**
Objective 4J-1 In noisy or hostile environments the impacts of external noise and pollution are minimised through the careful siting and layout of buildings.	**YES**
Objective 4J-2 Appropriate noise shielding or attenuation techniques for the building design, construction and choice of materials are used to mitigate noise transmission.	**YES**
Objective 4K-1 A range of apartment types and sizes is provided to cater for different household types now and into the future.	**YES**
Objective 4K-2 The apartment mix is distributed to suitable locations within the building.	**YES**

ADG COMPLIANCE TABLE	
Guideline	**Compliance**
Objective 4L-1 Street frontage activity is maximised where ground floor apartments are located.	**YES**
Objective 4L-2 Design of ground floor apartments delivers amenity and safety for residents.	**YES**
Objective 4M-1 Building facades provide visual interest along the street while respecting the character of the local area.	**NO**
Objective 4M-2 Building functions are expressed by the façade.	**NO**
Objective 4N-1 Roof treatments are integrated into the building design and positively respond to the street.	**NO**
Objective 4N-2 Opportunities to use roof space for residential accommodation and open space are maximised.	**YES**
Objective 4N-3 Roof design incorporates sustainability features.	**YES**
Objective 4O-1 Landscape design is viable and sustainable.	**YES**
Objective 4O-2 Landscape design contributes to the streetscape and amenity.	**YES**
Objective 4P-1 Appropriate soil profiles are provided.	**YES**
Objective 4P-2 Plant growth is optimised with appropriate selection and maintenance.	**YES**
Objective 4P-3 Planting on structures contributes to the quality and amenity of communal and public open spaces.	**YES**
Objective 4Q-1 Universal design features are included in apartment design to promote flexible housing for all community members.	**YES**
Objective 4Q-2 A variety of apartments with adaptable designs are provided.	**YES**
Objective 4Q-3 Apartment layouts are flexible and accommodate a range of lifestyle needs.	**YES**
Objective 4U-1 Development incorporates passive environmental design.	**YES**
Objective 4U-2 Development incorporates passive solar design to optimise heat storage in winter and reduce heat transfer in summer.	**YES**

ADG COMPLIANCE TABLE	
Guideline	**Compliance**
Objective 4U-3 Adequate natural ventilation minimises the need for mechanical ventilation.	**YES**
Objective 4V-1 Potable water use is minimised.	**YES**
Objective 4V-2 Urban stormwater is treated on site before being discharged to receiving waters.	**YES**
Objective 4W-1 Waste storage facilities are designed to minimise impacts on the streetscape, building entry and amenity of residents.	**YES**
Objective 4W-2 Domestic waste is minimised by providing safe and convenient source separation and recycling.	**YES**
Objective 4X-1 Building design detail provides protection from weathering.	**YES**
Objective 4X-2 Systems and access enable ease of maintenance.	**YES**
Objective 4X-3 Material selection reduces ongoing maintenance costs.	**YES**

Where there is a non-compliance with the ADG, as noted above, fails to meet the underlying objectives of the control, the issue forms a recommended reason for refusal.

Chapter 6 – Low and mid-rise housing

Development standard	Proposed	Complies
Consideration		
S 177 Landscaping – residential flat building or shop top housing Consent authority is to consider the Tree Canopy Guide for Low and Mid Rise Housing.	The proposal is consistent with Table 7 of the SEPP (Housing) 2021	**YES**
S 178 Minimum lot size for residential flat buildings or shop top housing A requirement specifies in another Environmental Planning Instrument or development control plan does not apply to development that meets the standards in Section 180(2) or (3) – (a) maximum Floor Space Ratio of 2.2:1 (b) maximum building height of 22 metres (for residential flat buildings)	Clause 6.6 of KLEP is applicable as the proposal does not comply with the FSR and maximum building height requirements.	**NO**

Development standard	Proposed	Complies
S 180 Section 180(2) or (3) – (a) maximum Floor Space Ratio of 2.2:1 (b) maximum building height of 22 metres (for residential flat buildings)	The proposal has a maximum building height of 30.48 metres and FSR of 2.71:1. Refer to the provisions of Chapter 2 above.	**NO**

<u>Any inconsistencies with other Environmental Planning Instruments</u>

The development standards referred to in the above Apartment Design Guide (ADG) table prevail to the extent of any inconsistency with another Environmental Planning Instrument including KLEP 2015.

The following controls under KLEP 2015 are not inconsistent with the above-mentioned SEPP Housing provisions and as such they continue to apply to the assessment of the subject application.

Ku-ring-gai Local Environmental Plan 2015

Clause 1.2 Aims of the Plan

The proposal has been assessed against the relevant Aims of the Plan. The proposal is inconsistent with these Aims for the reasons given within the assessment report.

Zoning and permissibility:

The site is zoned R4 High Density Residential. The proposed development is defined as a residential flat building and is permissible form of development with consent.

Zone objectives:

The objectives of this zone are:

- *To provide for the housing needs of the community within a high-density residential environment.*
- *To provide a variety of housing types within a high-density residential environment.*
- *To enable other land uses that provide facilities or services to meet the day to day needs of residents.*
- *To provide for high density residential housing close to public transport, services and employment opportunities.*

The proposed development provides housing for people within a high-density residential environment which is close to transport, services and employment. In this regard, the proposal is not inconsistent with the objectives of the zone.

Ku-ring-gai Local Environmental Plan 2015

Development standard	Proposed	Complies
Cl 6.6 - Requirements for multi dwelling housing and residential flat buildings: Minimum site area of 1,200m^2 and minimum dimensions (width and depth) of 30 metres if the area of the land is greater than 1,800m^2	The site provides a suitable area of 30 metres x 30 metres.	**YES**

Clause 4.3 and 4.4 of KLEP are not applicable. Refer to SEPP Housing Chapter 2 discussion above.

Clause 4.6 Exceptions to development standards

Clause 4.6 provides flexibility in applying certain development standards. An assessment of the requests to vary the development standards, as noted earlier, is provided below:

(1) The objectives of this clause are as follows:

(a) to provide an appropriate degree of flexibility in applying certain development standards to particular development,

(b) to achieve better outcomes for and from development by allowing flexibility in particular circumstances.

(2) Development consent may, subject to this clause, be granted for development even though the development would contravene a development standard imposed by this or any other environmental planning instrument. However, this clause does not apply to a development standard that is expressly excluded from the operation of this clause.

(3) Development consent must not be granted for development that contravenes a development standard unless the consent authority has considered a written request from the applicant that seeks to justify the contravention by demonstrating:

(a) that compliance with the development standard is unreasonable or unnecessary in the circumstances of the case, and

(b) that there are sufficient environmental planning grounds to justify contravening the development standard.

(4) Development consent must not be granted for development that contravenes a development standard unless:

(a) the consent authority is satisfied that:

I. the applicant's written request has adequately addressed the matters required to be demonstrated by subclause (3), and

II. the proposed development will be in the public interest because it is consistent with the objectives of the particular standard and the objectives for development within the zone in which the development is proposed to be carried out, and

(b) the concurrence of the Director-General has been obtained.

Whether compliance with the development standard is unreasonable or unnecessary in the circumstances of the case.

In *Wehbe v Pittwater Council* [2007] NSWLEC 827, the Court established five ways to demonstrate that compliance with a development standard is unreasonable or unnecessary. The applicant has adopted all 5 ways, as stated in their Clause 4.6 submission, to demonstrate that compliance with the building height development standard is unreasonable and unnecessary, which is summarised below:

- *The objectives of the development standard are achieved notwithstanding non-compliance with the standard.*

i. The proposal complies with the aims of the Chapter 6 of SEPP Housing as the proposed development involves the construction of a mid-rise residential flat building in that it is about 139m walking distance west from the Gordon Town Centre (as identified on the Town Centres Map in the Housing SEPP) and about 697m walking distance west of the Gordon Train Station. The site is located within the ***inner area*** *which applies to land located in an R4 High Density Residential zone and allows for additional height in these accessible areas. As such, the proposal complies with the aims of Chapter 6 of the Housing SEPP which relate to LMR provisions.*

ii. The proposal is compliant with Clause 15a, being the objectives of Division 1 infill affordable housing of SEPP Housing as the proposal responds to this objective by providing 8 affordable housing units to meet the needs of very low, low and moderate income households. These affordable housing units provide a range of housing types and sizes (1 x 1 bedroom unit, 1 x 2 bedrooms unit and 6 x 3 bedrooms units) through the proposed residential flat buildings that will directly address the demand for affordable housing. The larger apartments will also cater for demand for family-sized apartments in close proximity to local services and facilities and public transport options.

iii. An assessment of Clause 3, being the principles of the Housing SEPP as (summarised):

a. *Although the proposal does not provide purpose built rental housing it does provide family sized units for in an accessible location in both a market and affordable housing capacity, meeting the requirements of Cluse 3(a)*
b. *This proposal includes the provision of 8 affordable housing units which will respond to the needs of the more vulnerable members of the community in providing more affordable houses consistent with Clause 3(b).*
c. *The new apartments have been designed to align with the Chapter 4 Design of residential apartment development and Schedule 9 Design principles for residential apartment development of the Housing SEPP. This design approach ensures that the maximum number of apartments in the development meet minimum amenity requirements and provides a reasonable level of amenity consistent with Clause 3(c).*
d. *The future residents of the site will be able to take advantage of being close to services, facilities and public transport opportunities being 139 metres walking distance to Gordon Town Centre and 697 metres to Gordon Train Station consistent with Clause 3(d)*
e. *The proposal is consistent minimising adverse climate and environmental impacts of new housing by:*
    i. *Satisfactory bulk and scale being compliant with permitted FSR and is located within an R4 zone, in an area undergoing change close to the Gordon Town Centre and station, consistent with the built form of the neighbourhood and existing use and that a large portion of the building form that exceeds the maximum building height permitted under Chapter 2 of the Housing SEPP will not be discernible from the public domain as it results in a consistent and regular building.*
    ii. *Is a result of the steeply sloping site, maximising the number of affordable housing units, providing roof level communal open space and from encroachment of roof level services and plant.*
    iii. *The variation results in the units having internal amenity having maximised internal solar access and cross-ventilation.*
    iv. *Privacy from roof level communal open space is well setback with privacy screens to the northern, western and eastern sides reducing overlooking.*
    v. *Does not impact on significant views*
    vi. *The increase in overshadowing of the southern neighbouring properties from the height variation is not considered to be excessive, when compared to the shadowing resulting from a compliant scheme. The increase in the overshadowing is reasonable considering the existing steeply sloping topography and the addition of building bulk within the southern part of the site.*
f. *The proposed buildings are compatible with the existing and future character as the built form and appearance is consistent with the newer residential flat buildings along McIntrye Street, in particular to the west of the site along McIntyre Street.*

The applicant's arguments that compliance with the development standard is unreasonable and unnecessary is not supported for the following reasons:

- The KLEP sets a maximum building height of 22 metres. The application seeks an additional 4.2 metres, resulting in a total height of 26.4 metres - an increase of 15.45% based on the uplift provisions in the SEPP Housing policy, which apply only when at least 10% of dwellings are provided as affordable housing under Section 16(2). The proposal provides less than 10% affordable housing, as detailed elsewhere in this report, therefore the application is not entitled to benefit from the height uplift under the SEPP Housing. This means the development actually exceeds the standard by 8.48 metres, representing a 38.5% breach. Such a variation is substantial and cannot reasonably be considered 'minor,' as suggested in Part 7 of the Clause 4.6 request. Nevertheless, a minor breach alone does not justify varying a development standard.
- It is acknowledged that SEPP Housing does not include specific objectives for building height. However, it is prudent for the Clause 4.6 variation request considers objectives relevant to building height, as contained in Clause 4.3 of the KLEP, however the applicant has failed to do so. In this regard, the Clause 4.6 is unacceptable because it has not adequately addressed relevant objectives of the development standard.
- The applicant states that:

  > *a large portion of the built form that exceeds the maximum building height permitted under Chapter 2 of the Housing SEPP will not be discernible from the public domain as it results in a consistent and regular building*.

  It is unclear what is meant by 'consistent and regular building', nevertheless, the built form is not regular (assuming it means reflective of a typical RFB within the area) or consistent with the existing built form in the area.
- The applicant relies upon maximising internal solar access and amenity. Whilst this is disputed, the achievement of good amenity is not solely relatable to the additional GFA. A building with a compliant height could also achieve the same outcome with apartments of equal or better internal amenity. The previous approval under DA0038/23 demonstrates that a building with a lower building height can achieve good amenity consistent with the ADG and DCP requirements.
- The lack of amenity impacts is not a sufficient reason to justify the contravention of a development standard. Nevertheless, it is not agreed there is a lack of amenity impacts. The proposed development adversely impacts on the amenity of adjoining properties, as detailed within reasons for refusal 4 and 5.
- The screening structures that have been added to building A to 'hide' the services exceed the height limit and are not well integrated into the design and built form resulting in additional and unacceptable bulk and scale.

Whether there are sufficient environmental planning grounds to justify contravening the development standard.

The applicant states that the following environmental planning grounds justify the contravention of the development standard:

- *Despite the numerical non-compliance with the additional height for in-fill affordable housing development standard, the development provides a scale and form of development that is compatible with surrounding existing and approved developments and one that is expected under the Housing SEPP provisions, in particular those relating to LMR and in-fill affordable housing provisions. The overall development will be compatible with the existing and emerging character of Gordon Town Centre, noting the current provisions of the Housing SEPP together with the alternative TOD provisions being pursued by Council. Consequently, the proposed development will not be out of character with this scale.*
- *Despite the proposed development causing additional overshadowing on the properties to the immediate south, in the context of Council's preferred scenario for TOD development, significant overshadowing will likely result from the scale of development envisaged for the area surrounding Gordon Station. This would include additional shadow falling directly on the site from the preferred planning controls enabling 50-80m buildings immediately to the east of the site, at the top of McIntyre Street. As such, any additional overshadowing caused by the proposed development, including any resultant shadow impacts from the height variation, will be negligible compared to the resultant shadow of 50-80m high buildings. Consequently, given the desired future context of this area, the additional overshadowing is considered to be acceptable.*
- *The proposed height variation maximises the future amenity of the residential dwellings proposed in response to the current housing crisis with no unacceptable, additional, adverse environmental impacts. The proposed height exceedance enables the delivery of a high quality communal open space at roof level and generous floor to floor heights. In this regard, the height variation is directly consistent with the aims of the development standards provided within the Housing SEPP.*
- *The height variation is in part a direct consequence of the slope of the site, the orientation of the site and the introduction of building form in the southern part of the site. The site is one of the last sites to be redeveloped along McIntyre Street within the R4 High Density Residential zone*
- *The additional height enables the provision of a high-quality residential development that also provides for additional affordable housing units. There is an inherent public benefit in providing additional residential dwellings including affordable housing on the site, particularly given the proximity of the site to the Gordon Town Centre and Gordon Train Station.*
- *The proposed development responds to the NSW Government's strategic and statutory planning initiatives to encourage private developers to boost diversity of housing choice and deliver more market housing. Namely, the breach reflects the objectives and development standards provided in the Housing SEPP for infill affordable housing and LMR housing.*
- *The proposed development will contribute to the viability and attractiveness of the Gordon Town Centre. The proposed development achieves the objects in Section 1.3 of the EP&A Act, specifically:*
    - *The development will deliver affordable housing, with more than 872.9sqm of gross floor area of the development being provided as affordable housing for the wider Gordon community. The development is well placed to maximise the*

benefits of this type of housing, being near the Gordon Town Centre and Gordon Train Station, providing access to the wider Sydney region.

- *The proposal promotes the orderly and economic use and development of land through the redevelopment of underutilised sites for an appropriate residential development.*
- *The proposed development promotes the construction of a building which exhibits good design and amenity of the built environment. Giles Tribe Architects have designed the buildings with consideration of the context and have incorporated various architectural elements to create a high-quality design outcome.*

The applicant's environmental planning grounds are not accepted for the following reasons:

- The environmental planning grounds provided are generic and do not address site specific elements causing the breach. No supporting evidence, such as a detailed solar analysis demonstrating that upslope development would render the additional height inconsequential. Justification must cover all building components exceeding 22 metres, as the proposal is not eligible for affordable housing uplift.
- The inclusion of affordable housing does not in itself justify exceeding the building height development standard.
- It is not accepted that the variation will not result environmental impacts. The proposal includes excessive and non-compliant site coverage, reduced solar access to neighbouring properties, and there are urban design issues relating to unacceptable bulk and scale.
- References to TOD SEPP, under-utilisation, and good design are generic and fail to demonstrate site-specific environmental planning grounds.
- While overshadowing from other developments may occur, insufficient information has been provided to assess these impacts.

The site's topography may present a reasonable environmental planning ground, however the Clause 4.6 variation request does not demonstrate how the site's unique circumstances justify the departure from the development standard, as required under *Wehbe v Pittwater Council*. The proposed height variation cannot be supported due to the lack of adequate justification. As a result, this forms the basis for recommended refusal reason 2..

Authority to determine variation

Any variation to a numerical standard that exceeds 10% or relates to a non-numerical standard must be considered by the Ku-ring-gai Local Planning Panel or the Sydney North Planning Panel. As the variation to the numerical building height standard is more than 10%, the application is required to be referred to the Ku-ring-gai Local Planning Panel.

Development standards that cannot be varied.

The variation to the development standard is not contrary to the requirements in subclauses (6) or (8) of Clause 4.6.

Part 5 Miscellaneous provisions

Clause 5.10 – Heritage conservation

The subject site does not contain a heritage item, is not located within 100m of an Item, and is not within a heritage conservation area. The proposed works do not affect any known archaeological or Aboriginal objects or Aboriginal places of heritage significance.

Part 6 Additional local provisions

Clause 6.1 – Acid sulphate soils

The objective of this clause is to ensure that development does not disturb, expose or drain acid sulfate soils and cause environmental damage. The land is mapped as Class 5 Acid sulfate soils. Development consent is required for works within 500m of adjacent Class 1, 2, 3 or 4 land that is below 5m Australian Height Datum and by which the watertable is likely to be lowered below 1 metre Australian Height Datum on adjacent Class 1, 2, 3 or 4 land. The proposal is not subject to this clause as the works are more than 500m of adjacent Class 1, 2, 3 or 4 land.

Clause 6.2 - Earthworks

In relation to earthworks, the proposed development will not restrict the existing or future use of the site, adversely impact on neighbouring amenity, the quality of the water table or disturb any known relics. Additionally, the fill to be removed will be disposed of appropriately.

Clause 6.3 - Biodiversity protection

The site is partially mapped as containing biodiversity significance. The application fails to provide adequate information, specifically the required 5-part test to assess the extent of potential impacts. This information is necessary to demonstrate that the development has been designed to minimise impacts on the diversity and condition of native vegetation, fauna, and habitat, in accordance with Clause 6.3 of the LEP.

Further, a consent authority cannot lawfully approve the application without the required 5-part test because the Environmental Planning and Assessment Act, (EPA Act) and Biodiversity Conservation Act because it is a prerequisite to its determination.

Clause 6.4 – Riparian land and waterways

The site is mapped as riparian land and waterways. Council's Ecological Assessment Officer has reviewed the application and is not satisfied that the proposal has been designed to minimise impacts on riparian land and waterways, as per the requirements of the LEP. It is agreed that the proposed landscaping does not adequately address Part 17.4 – Category 3: Bed and Bank Stability of the DCP, as detailed in reason for refusal 12.

Clause 6.5- Stormwater and water sensitive urban design

Council's Development Engineer has reviewed the application and is satisfied that the proposal meets the objectives of this clause.

It is agreed that the proposal seeks to minimise the adverse impacts of urban water on the site and within the catchment and that the stormwater design adequately manages water quality and controls discharge volumes and frequency.

Policy Provisions (DCPs, Council policies, strategies and management plans)

Ku-ring-gai Development Control

Part 1A.5 General aims of the DCP

The proposed development has been assessed against the general aims of this DCP and is found to be unacceptable in all relevant respects for the reasons given throughout this report.

Part 2: Site analysis

A site analysis plan which identifies the existing characteristics of the site and surrounding area has been provided as part of the development application. The site analysis is considered to satisfy the objectives of this part of the DCP.

Part 3: Land consolidation and subdivision

The proposed development requires the consolidation of the existing allotments. This aspect of the development was approved under DA0038/23.

Part 7: Residential Flat Buildings

COMPLIANCE TABLE		
Development Control	**Proposed**	**Complies**
Part 7 Residential Flat Buildings		
7A.1 – Local character and streetscape		
All Residential Flat Buildings are to be designed by an architect registered with the NSW Architects Registration Board.	The development has been designed by a registered architect per the Design Statement.	**YES**
All residential flat buildings are to demonstrate how they provide a garden setting with buildings surrounded by landscaped gardens, including tall trees, on all sides.	A garden setting is not provided due to insufficient deep soil area.	**NO**

Design components of new development are to be based on the existing predominant and high quality characteristics of the local neighbourhood.	Design components do not reflect high quality characteristics of the neighbourhood.	**NO**
The appearance of the development is to maintain the local visual character by considering the following elements: i) visibility of on-site development when viewed from the street, public reserves and adjacent properties; and ii) relationship to the scale, layout and character of the tree dominated streetscape of Ku-ring-gai.	The development does not have an appropriate relationship to the scale, layout and character of the streetscape.	**NO**
The predominant and high quality characteristics of the local neighbourhood are to be identified and considered as part of the site analysis.	The submitted site analysis is acceptable.	**YES**
Development is to integrate with surrounding sites by: i. being of an appropriate scale retaining consistency with the surrounds when viewed from the street, public domain or adjoining development; ii. minimising overshadowing; and iii. integrating built form and soft landscaping (gardens and trees) within the tree canopy that links the public and private domain throughout Ku-ring-gai.	The proposed development is not of an appropriate scale, does not minimise overshadowing and is not integrated with soft landscaping and surrounding built form.	**NO**
Colours of materials used in sites adjoining or in close proximity to bushland areas and Heritage Conservation Areas are to be in harmony with the built and natural landscape elements of the area.	The colours and finishes are acceptable.	**YES**
7A.2 – Site layout		
The site layout is to demonstrate a clear and appropriate design strategy and arrangement of building mass in response to the Site Analysis in Part 2 Site Analysis of this DCP. Demonstration of design strategies to address opportunities and constraints based on Site Analysis are to include:	The proposed development does not appropriately respond to the context.	**NO**

i. building location and orientation on the site optimising northern aspect; relationship with neighbouring developments; building setbacks; geographical aspect; views; access etc; ii. response of building development in maintaining site characteristics within the subject site, such as topography, vegetation, significant trees, any special features, etc. iii. building separation and internal layouts of buildings that respond to (i) above and be consistent with the requirements of the DCP. iv. limited apartments with no direct sunlight.		
Drawings and supporting written information is to demonstrate how the building and its layout has applied and responded to the site analysis required by Part 2 of the DCP.	The proposal does not respond to the site analysis.	**NO**
Any building with a frontage to the street is to address that street.	Building entry not visible from the street.	**NO**
Soft landscaping, including tall trees, is to be provided between onsite buildings, fences and courtyard walls.	Insufficient deep soil area is provided.	**NO**
Hard landscaping is to be minimised and to maximise opportunities for landscape planting	Opportunities for soft landscape plantings are not maximised.	**NO**
Long straight driveways are not permitted, except where necessary for battle-axe sites. Driveways are to be designed to be of minimal visual impact.	A long straight driveway is not proposed.	**YES**
Provide a single pedestrian entry point into the development from the street. Other entries may be permitted where several buildings address the street along an extended street or where there are dual frontage sites.	Single pedestrian entry point provided.	**YES**
Three hours of direct sunlight between 9am and 3pm on 21st June is to be maintained to the living rooms, primary private open spaces and any communal open spaces within i. existing residential flat buildings and multi-dwelling housing on adjoining lots, and	3 hours of solar access is not achieved to adjoining properties.	**NO**

ii. residential development in adjoining lower density zones. Note: Where an adjoining property does not currently receive the required hours of solar access, the proposed building is to ensure that solar access to neighbours is not reduced by more than 20%.		
Overshadowing should not compromise the development potential of the adjoining yet to be redeveloped sites.	It has not been demonstrated that overshadowing will not compromise the development of adjoining properties.	**NO**
Developments are to allow the retention of a minimum of 4 hours direct sunlight between 9am to 3pm on 21st June to all existing solar collectors and solar hot water services on neighbouring buildings.	The proposed development does not overshadow adjoining solar collectors.	**YES**
7A.3 – Building setbacks		
Residential flat buildings are to meet the following street setback requirements: i. 10 metres from the street boundary; ii. on corner sites and sites with multiple street frontages at 10 metres setback is to be provided on all street frontages.	10 metres	**YES**
Residential flat buildings are to provide a 2 metres articulation zone behind the street setback, and no more than 40% of this zone (in plan) is to be occupied by the building.	Further articulation would increase deep soil.	**NO**
The building line to any street is to be parallel to the prevailing building line in the streetscape. For angled sites, a stepped façade may be appropriate.	The building lines are parallel to the street frontages.	**YES**

Residential flat buildings are to meet the following side and rear setback requirements to ensure deep soil, landscaping and tall trees are accommodated to all sides of the building: i) a minimum of 6 metres from the side boundary for all levels up to the fourth storey. ii) a minimum of 9 metres to the fifth storey and above.	Non-compliant along the: Northern elevation: Building B GF – L7: 4.25 metres Eastern elevation: Building B L4-L7: minimum: 6 metres Western elevation: Building A L4-L7: minimum: 6.95 metres	**NO**
Side setback areas behind the building line are not to be used for driveways or for vehicular access into the building.	Side setbacks behind the building line are not proposed for driveways/vehicular access.	**YES**
Driveways are to be set back a minimum of 6m from the side boundary within the street setback to allow for deep soil planting.	No change to approved driveway DA0038/23.	**As approved**
Setbacks are to respond to the attributes identified in the site analysis, conducted as required by Section A Part 2 Site Analysis of the DCP, including consideration of the location of adjoining buildings and views of the site.	Adequate consideration has not been undertaken.	**NO**
Encroachments i. Basements do not encroach into any setback areas ii. Ground floor terrace/courtyard walls min 8 metres to street boundary / 4 metres to rear & side boundaries / 7 metres adjacent to lower density residential zone iii. No encroachments where site area is < $1800m^2$	Courtyard encroachments reduce deep soil.	**NO**

iv. No encroachments are permitted where minimum side setbacks have not been achieved. v. A maximum of 15% of the street setback area occupied by private terraces/courtyards		
Eaves, open pergolas, blades, fins and columns may encroach into the setback areas where they do not increase the apparent bulk of the building or create visual clutter:	Satisfactory.	**YES**
7A.4 – Building Separation		
Residential flat buildings on the same development site are to include areas of deep soil in between the buildings that are capable of housing substantial vegetation and tall trees.	The approved basement extends between the two buildings and therefore deep soil is not reduced in this location.	**YES**
The minimum separation between residential buildings on the development site is to comply with the following controls: Up to 4th storey: • 12 metres between habitable rooms/balconies • 9 metres between habitable rooms/balconies and non-habitable rooms • 6 metres between non-habitable rooms 5th storey & above: • 18 metres between habitable rooms/balconies • 13.5 metres between habitable rooms/balconies and non-habitable rooms • 9 metres between non-habitable rooms	3.5 metres (min between Building A and Building B up to level 6).	**NO**
Buildings are to be located so that apartments benefit from views into and through onsite landscaped gardens.	Apartments have views to on-site gardens.	**YES**

7A.5 – Site coverage		
The site coverage may be up to a maximum of 30% of the site area, provided that the deep soil landscaping requirements in Section A Part 7A.6 Deep Soil Landscaping are met.	The applicant states site coverage is 42.2%, however the calculation plan appears to be incorrect.	**NO**
7A.6 – Deep soil landscaping		
A minimum deep soil landscaping area of 50% for a site area of 1800m^2 or more.	45.8%	**NO**
Deep soil zones are to be configured to retain healthy and significant trees on the site and adjoining sites, where possible.	Satisfactory	**YES**
Deep soil zones are to be configured to allow for required tree planting including tall tree planting and garden and screen planting at front, side and rear boundaries.	Satisfactory	**YES**
Deep soil landscaping is to be provided in the common areas as a buffer between buildings that softens the bulk and scale of the buildings.	The reduction in landscape area between buildings is unsatisfactory.	**NO**
Driveways are not to dominate the street setback area. Deep soil landscaping areas in the street setback are to be maximised.	Satisfactory	**YES**
Lots with the following sizes are to support a minimum number of tall trees capable of attaining a mature height of at least 18m on shale, transitional soils and 15m on sandstone derived soils. i. 1200m^2 or less – 1 tall tree per 400m^2 or part thereof ii. 1201m^2 – 1800m^2 – 1 tall tree per 350m^2 or part thereof iii. 1801m^2 + - 1 tall tree per 300m^2 or part thereof **(11 trees required)**	20 trees provided.	**YES**
In addition to the tall trees, a range of medium trees, small trees and shrubs are to be selected to ensure that vegetation softens the building form and creates a garden setting. At least 50% of all tree plantings are to be locally occurring trees and spread around the site.	Satisfactory	**YES**
Trees are to be planted within all setback areas. At least 30% of the required number of tall trees are to be planted within the front	Satisfactory	**YES**

setback.		
7B – Access and parking		
7B.1 – Car parking provision		
All residential flat developments are to provide on-site car parking within basements**.**	The approved development has basement car parking.	**As approved**
Basement car park areas are to be consolidated under building footprints.	The basement is as approved as per DA0038/23.	**As approved**
The basement car park is not to project more than 1 metre above existing ground level.	The basement approved under DA0038/23 includes some areas >1 metre above natural ground level.	**As approved.**
Single lane aisles, straight ramps and tunnels max 12 metres in length.	Satisfactory.	**YES**
Direct and continuous internal pedestrian access from basement car park is provided to each level of the building	Lifts and fire stairs are proposed from the basement to each level of the building.	**YES**
Car park entry is to be integrated within the building and located behind the building line.	Car parking entry is located behind the building line and integrated.	**YES**
Car parking design is to be in accordance with requirements for Silver and Platinum Level dwellings as required in this DCP and by the *Livable Housing Guidelines*. Circulation areas, roadways and ramps are to comply with AS2890.1. Where a conflict occurs, the *Livable Housing Guidelines 2012* is to take precedence.	Complies.	**YES**

<table>
<tr>
<td>Car parking rates for residential flat developments on sites within 800 metres walking distance of a railway station entry:

<table>
<tr><td>Type</td><td>Minimum</td><td>Maximum</td></tr>
<tr><td>Studio</td><td>0 spaces</td><td>0.5 spaces</td></tr>
<tr><td>One bedroom</td><td>0.6 spaces</td><td>1 space</td></tr>
<tr><td>Two bedrooms</td><td>0.9 space</td><td>1.25 spaces</td></tr>
<tr><td>Three or more bedrooms</td><td>1.4 space</td><td>2 spaces</td></tr>
</table>
Visitors: 1 per 6 units (at least one is accessible

Min 1 visitor parking space complies with the requirements of AS2890.6

Note: Any spaces provided which exceed the upper range in Control 9 above will be included as gross floor area.</td>
<td>SEPP Housing requires 74.4 parking spaces and takes prevails over the DCP, which requires 92 spaces including 9 visitor spaces.

98 spaces are provided.</td>
<td>YES</td>
</tr>
<tr>
<td>At least one visitor car space is to be accessible and be provided within the site for every 6 apartments or part thereof and is to comply with the dimensional and locational requirements of AS2890.6.</td>
<td>1 accessible visitor space provided.</td>
<td>YES</td>
</tr>
<tr>
<td>A clearly signposted parking bay for temporary parking of service and removalist vehicles is to be provided. The space is to have the
following standards:
i) a minimum dimension of 3.5 metres x 6 metres;
ii) a minimum manoeuvring area 7 metres wide.</td>
<td>Satisfactory.</td>
<td>YES</td>
</tr>
<tr>
<td>One visitor parking bay is to be provided with a tap, to make provision for on-site car washing.</td>
<td>Satisfactory.</td>
<td>YES</td>
</tr>
<tr>
<td>At least one car share space is to be provided in the basement per 90 dwellings, or part thereof.</td>
<td>1 car share space provided.</td>
<td>YES</td>
</tr>
</table>

Parking areas are to be designed and constructed so that electric vehicle charging points can be installed.	A condition would be recommended to ensure compliance if the application was recommended for approval.	**YES**
7B.2 – Bicycle parking and support facilities provision		
Provide on-site, secure bicycle parking spaces and storage at the following rates: i) 1 bicycle parking space per 5 units or part thereof for residents within the residential car park area; and ii) 1 bicycle parking space (in the form of a bicycle rail) per 10 units for visitors in the visitor car park area.	17 spaces	**YES**
All on-site bicycle parking spaces and storage are to be designed to AS2890.3.	Satisfactory	**YES**
7C – Building design and sustainability		
Part 7C.1 - SEPP 65 and Apartment Design Guide requirements		
All residential flat buildings are to comply with the objectives, Design Criteria and Design Guidance of the following *Apartment Design Guide* sections: 3F Visual Privacy 4A Solar and Daylight Access 4B Natural Ventilation 4C Ceiling Heights 4D Apartment Size and Layout 4E Private Open Space and Balconies 4F Common Circulation and Spaces 4G Storage	Refer to the ADG compliance table.	**NO**
7C.2 – Communal open space		
At least 10% of the site area must be provided as communal open space. Each parcel of communal open space is to have a minimum dimension of 5 metres.	Primary communal open space of 190.5 m^2. Secondary communal open space within the front setback is approximately 140 m^2.	**YES**

At least one single parcel of Primary communal open space with a minimum area of $80m^2$ and a minimum dimension of 8 metres is to be provided.	>$80m^2$ >8 metres	**YES**
The Primary communal open space is to be directly accessible from the internal common circulation areas.	The proposed principal usable part of the communal open space located on Level 6 of Building A cannot be directly or equitably accessed from the units in Building B.	**NO**
The Primary communal open space is to be located at or above finished ground level behind the building line. Roof top Primary communal open space may be provided where the ground level cannot meet performance requirements or is undesirable.	Roof top terrace provided.	**YES**
Secondary communal open spaces are to have a minimum dimension of 5 metres and may be provided on roof tops.	>5 metres	**YES**
Access to and within the Primary communal open space is to be provided for people with a disability Part 2 Section 7 of AS1428.	Complies.	**YES**
The location and design of the Primary communal open space is to optimise opportunities for active and passive social and recreation activities, solar access and orientation, summer shade, outlook, and maintain the privacy of residents on adjoining sites zoned differently for lower density residential development sites.	Satisfactory	**YES**
At least 50% of the area of the Primary communal open space and any Secondary communal open space are to receive direct sunlight for at least two hours between 9am and 3pm on 21st June.	The communal open space located on Level 6 of Building A does not receive direct sunlight to a minimum 50% of its area between 9am and 3pm on 21 June.	**NO**

Communal open space is to be integrated with any significant natural feature(s) of the site and soft landscaping areas.	Satisfactory	**YES**
The communal open space is to have surveillance from at least two onsite apartments for safety reasons.	The principal communal open space complies.	**YES**
Communal open space design is to avoid creation of concealment or entrapment areas.	No entrapment areas are proposed.	**YES**
Shared facilities such as barbecue facilities, shade structures, play equipment and seating, are to be provided within the Primary communal open space.	Communal open space includes areas for passive recreation.	**YES**
Garden maintenance storage areas, drainage and connections to water taps are to be provided with the Primary communal open space. Secondary communal open spaces are to have adequate connections to water for maintenance purposes.	No garden maintenance storage area proposed.	**NO**
7C.3 – Ground floor apartments		
Ground floor apartments are to be separated from noise sources such as common areas, communal open space and the public domain.	Suitably separated.	**YES**
Ground and podium level apartments are to have private outdoor areas differentiated from communal areas by at least one of the following: i) a change in level; ii) walls to deflect noise; iii) planting, such as hedges and low shrubs; iv) a fence/wall to a maximum height of 1.8 metres. Any solid wall component is to be a maximum height of 1.2 metres with at least 30% transparent component above.	Ground floor units separated by planting / balustrading.	**YES**
A gate is to be provided from each ground floor apartment private open space into common areas where practical.	Gates not proposed.	**NO**
No subterranean rooms to any part of any apartment	LG03 approved as per DA0038/23	**As approved**
No ground floor apartments created as a result of excessive excavation.	Excavation of the lower ground was considered to have satisfactory	**YES**

	amenity as per DA0038/23.	
No part of any wall used to accommodate any residential apartment uses, including storage areas outside the apartment, is to be in direct contact with soil or rely on any form of tanking including spaces that act as tanking.	Storage is not directly attached to basement which was approved in DA0038/23. A condition is included within DA0038/23 requiring a fully tanked structure.	**YES**
Tanking may only be provided to basement parking levels. Where basement storage is located adjacent to external walls, they are to be separated from the tanked wall by an accessible maintenance passage.	Storage is not directly attached to basement which was approved in DA0038/23. A condition is included within DA0038/23 requiring a fully tanked structure.	**YES**
The internal finished floor level of any part of a ground floor apartment and/or private open space is not to be more than 0.9m below existing ground level at the building line.	LG03 approved as per DA0038/23	**As approved**
Where the internal finished floor level of a ground floor apartment and/or private open space is not more than 0.9m below the existing ground level at the building line, the ground level adjacent to the building is to be levelled to the finished floor level for a distance of 3.0m from the building line.	LG03 approved per DA0038/23.	**As approved**
All obstructions, such as retaining walls or fences, are to be located below a 45˚ control plane, drawn from the finished ground level at the building line. Landscaping plants may project beyond the 45˚control plane.	LG03 approved as per DA00338/23.	**As approved**
7C.4 – Apartment mix and accessibility		
Range of apartment sizes (one, two, three bedroom) included within the development	A range of apartment sizes proposed.	**YES**
Mix of 1, 2 & 3 bedrooms apartments located on the ground level.	A mix of 1, 2, 3 and 4 bedrooms	**YES**

	apartments proposed.	
All apartments are to be designed to Silver Level under the Livable Housing Design Guidelines	All units are designed to Silver level.	**YES**
At least 15% of the dwellings (or part thereof) are to be designed to Platinum Level under the Livable Housing Design Guidelines.	15%	**YES**
At least 70% of all dwellings are visitable.	All units appear to be visitable.	**YES**
7C.5 – Building entries		
The residential flat building entry is to be clearly expressed using appropriate architectural elements.	Building entry not visible from the street.	**NO**
Buildings are to address the street by providing visible entry points with the following: i) main building entrances that are level and directly accessible from the street; or, ii) where site configuration is conducive to having a side entry, the path to the building entrance is readily visible from the street, and the building entrance is signalled with appropriate architectural elements.	Building entry not visible from the street.	**NO**
Entry foyers are to be no more than 1 metre above ground level. Any ramped access required is to be integrated into the design of the building or landscape. Mechanical chairlifts and the like will not be accepted.	Satisfactory	**YES**
Buildings are to have a clearly visible building entry for each vertical circulation core with clear way-finding signs integrated into the external circulation pathway system.	Front building entry not clearly visible from street.	**NO**
The building entry is to be legible and integrated with horizontal and vertical building facade architectural elements. At street level, the entry is to be articulated with awnings, porticos, recesses or projecting bays for clear identification.	Front building entry not clearly visible from street.	**NO**
All entry areas are to be well lit and designed to avoid any concealment or entrapment	Entry does not include spaces for entrapment and is	**YES**

areas and avoid dog leg entry foyers. All light spill is prohibited.	capable of being well lit.	
Lifts are to be directly visible from the building entry doorway.	Lifts are visible from entry doorway.	**YES**
Lockable mailboxes are to be: - provided close to the street; and - be at 90 degrees to the street and to Australia Post standards; and - integrated with front fences or building entries.	Letter boxes indicated at front entry.	**YES**
On large development sites comprising multiple separate buildings, each building is to have its own clear entry with good sightlines. Way-finding signs are to be provided.	Each building has its own entry.	**YES**
All entries are to be integrated into the external circulation pattern of the development.	Satisfactory.	**YES**
Building entry paths are to be minimum 1.2 metres wide and located within the common area with a minimum dimension of 1.2 metres on either side for landscape planting. Paths are to provide extra width at building entries to allow easy passing between pedestrians and to allow effective turning.	Satisfactory.	**YES**
All common circulation corridors are to be at least 1.5 metres wide, and the area outside lifts is to be at least 1.8 metres wide.	Satisfactory.	**YES**
7C.6 – Building Form and Facades		
All building facades at ground level are to be designed to avoid the creation of entrapment areas.	Entrapment areas are not proposed.	**YES**
No single wall plane is to exceed 81m^2 in area.	Approx: Building B: southern elevation: 806m^2, eastern elevation: 240m^2 and western	**NO**

	and northern 180m^2. Building A: southern elevation: 230m^2, eastern elevation up to 140m^2, western elevation: 160m^2, northern elevation: 115m^2	
The following are to be avoided on all building elevations: i) large flat walls; ii) undifferentiated window openings; iii) applied treatments; iv) one single predominant finish or material.	There are several flat unarticulated walls, as per the above consideration.	**NO**
All facades are to place entries, habitable room windows, and balconies so that they maximise outlook and passive surveillance of the street and to common areas surrounding the building.	Balconies are located to maximise passive surveillance of the street.	**YES**
All building elements including shading devices, signage, drainage pipes awnings/colonnades and communication devices are to be coordinated and integrated into the overall facade design.	Southern mechanical plant room on Level 6 of Building A is not considered to be integrated within the development.	**NO**
Air conditioning condensers are to be located within the basement or within the roof structure of the upper most roof. Air conditioning condensers are not to be located on: i) the building façade: ii) the top of a flat roof: iii) terraces; iv) private or communal open spaces; or v) balconies.	Air conditioning condensers are located within the basement and roof top.	**YES**
Screening between adjacent apartments is to be integrated into the overall building design.	Concern has been raised in relation to screens on windows.	**NO**

Notches, slots or indentations in the perimeter of the building are to be at least as wide as they are deep.	Indent on eastern side of Building A does not comply. The indent is a minor variation and acceptable.	**NO**
Facade elements that result in poor architectural design outcomes for internal spaces, such as snorkel windows, are not permitted.	Snorkel windows are not proposed.	**YES**
All facades are to be designed to minimise on-going maintenance and weathering through measures such as: i) selecting appropriate robust materials/finishes; and ii) including appropriate building edge, balcony edge, sill, head and parapet detailing that demonstrates protection from prevailing weather and harsh solar aspects.	Finishes and materials are acceptable.	**YES**
Facade Articulation		
All building facades are to be articulated with wall planes varying in depth by not less than 0.6 metre, and supplemented with architectural elements.	The proposed facades of Building B, particularly the southern rear facade which will be visible from Dumaresq Street, is large, flat and minimally articulated.	**NO**
Facade articulation is to be well composed with attractive proportions and coherent rhythms and integrated into the building form and structure.	The proposed facades of Building B, particularly the southern rear facade which will be visible from Dumaresq Street, are large and flat and relatively unarticulated.	**NO**
Blade walls are not to be the sole element used to provide articulation.	Inadequate articulation is provided. Facades of Building B, particularly the	**NO**

	southern rear facade which will be visible from Dumaresq Street, are large and flat and relatively unarticulated.	
All developments are to utilise shading/glare control devices to articulate the facade and contribute to the streetscape. Design solutions can include: i) providing external horizontal shading to north-facing windows, such as eaves, overhangs, pergolas, awnings, colonnades, upper floor balconies, and/or deciduous vegetation; ii) providing vertical shading to east and west windows, such as sliding screens, adjustable louvres, blinds and/or shutters; iii) providing shading to glazed and transparent roofs; iv) integration of shading devices with solar energy collection technology.	Shading devices proposed.	**YES**
Building Length		
The continuous length of a single building on any elevation is not to exceed 36 metres.	The proposed building length of Building A is 52.3 metres, which is 600 millimetres longer than the approved building length per DA0038/23. The increase in building length is not acceptable given the loss of deep soil and increase in building height. (Refer to reason for refusal 2 and 8).	**NO**

The length of a single building elevation facing the side or rear boundary may exceed 36m provided that: i) the façade is recessed in depth and width to appear as distinctive and separate building bays or wings; and ii) the recess is retained as common area with landscaping which includes at least one medium tree (at least 8m canopy diameter at maturity).	The proposed length of Building A is 52.3 metres, which is 600 millimetres longer than the approved building length per DA0038/23. The increase in building length is not acceptable given the loss of deep soil and increase in building height. (Refer to reason for refusal 2 and 8).	**NO**
Balconies		
Balcony or terrace design may incorporate building elements such as pergolas, sun screens, shutters, operable walls and the like to respond to the street context, building orientation and residential amenity. The use of such building elements are not to enable the balcony or terrace to be used as a habitable room.	Satisfactory	**YES**
Balconies that run the full length of the building facade are not permitted.	Building A has balconies that run the full length of the façade and are acceptable as partially solid-balustrades are provided which are integrated into the overall building facade.	**YES**
Continuous transparent or translucent balustrades are not permitted to balconies or terraces.	Continuous transparent balustrading not proposed.	**N/A**
Balconies are not to project more than 1.5 metres from the outermost wall of the building facade.	Balconies do not project more than 1.5 metres from the outermost walls.	**YES**

7C.8 – Top storey design and roof forms		
The top storey of a building is to be designed so that: i) the GFA of the top storey of a residential flat building does not exceed 60% of the GFA of the storey immediately below it; and ii) for the purposes of this section, the top storey applies to the building as a whole and does not apply to the top level of each part of a stepped building.	The top storey of Building A has 103.3% of the GFA of the storey below and is not acceptable.	**NO**
The top storey of a building is to be set back a minimum of 2.4 metres from the outer face of the floors below on all sides (roof projection is allowed beyond the outer face of the top storey).	The proposed top storey of Building A and the top storey of Building B are not set back a minimum of 2.4 metres from the outer face of the floors below on all sides and is not acceptable.	**NO**
The upper storeys of residential buildings are to be articulated with differentiated roof forms, maisonettes or mezzanine penthouses and the like.	The upper level of building A is not adequately articulated and is not acceptable.	**NO**
Service elements are to be integrated into the overall design of the roof and not be visible from the public domain or any surrounding development. These elements include lift overruns, plant equipment, air conditioning units, chimneys, vent stacks, water storage, communication devices and signage.	The southern mechanical plant room of Building A is not integrated and will be visible from surrounding developments and is not acceptable.	**NO**
Roof design is to respond to solar access and prevailing weather with the use of eaves, skillion roofs, awnings and the like with a minimum overhang of 0.6m	Roof overhangs have been provided.	**YES**
Lightweight pergolas, sun-screens, privacy screens and planters are permitted on the roof or podium, provided they are integrated with the building and facade design and do not increase the bulk of the building, create visual clutter or impact on significant views	Privacy screens are not integrated in relation to the mechanical plant areas and is not acceptable.	**NO**

from adjoining properties.		
Roof top gardens for private or communal use are encouraged.	Roof top gardens provided.	**YES**
7C.9 – Laundry and air clothes drying facilities		
Each apartment is required to have access to an external air clothes drying area, such as a screened balcony, a terrace or clothes lines within the common area. All external air clothes drying areas are to be screened and not be visible from any public domain area.	External clothes drying areas not indicated, which is not acceptable.	**NO**
Storage volume calculation within laundries is to exclude the space required to accommodate a washing tub, washing machine and dryer.	Adequate storage provided.	**YES**
Where clothes drying is provided within private open space within a communal open space, its area is to be additional to that required for the private open space or communal open space.	Clothes drying areas are not proposed, which is not acceptable.	**NO**
7C.11 – Acoustic Privacy		
Noise levels associated with air conditioning, kitchen, bathroom, laundry ventilation, other mechanical ventilation systems and other plant are to comply with the requirements in Part 23.8 of the DCP.	Inadequate information provided.	**Unclear**

Ku-ring-gai Development Control Plan

Section B

Part 15 – Land Contamination

The site is not mapped as being contaminated and has a history of residential use and as such, it is unlikely to contain contamination, and further investigation is warranted in this case.

Part 17 – Riparian Lands

The site is mapped as riparian land. Council's Ecological Assessment Officer has raised concern regarding the design of landscaping around the riparian area. It is agreed that the landscape plan is inadequate, as referenced in reason for refusal 12.

Part 18 – Biodiversity

The site is mapped as land comprising biodiversity significance.

Council's Ecological Assessment Officer has reviewed the application. Insufficient information has been received to determine impacts. As such further information is required to determine if the proposed development will not result in a significant detrimental impact contrary to the objectives of these provisions in relation to the diversity and condition of native vegetation, fauna and habitat. It is agreed that insufficient information has been provided and reason for refusal 11 is included within the recommendation.

Part 19 – Heritage and Conservation Areas

The subject site does not contain a heritage item, is not located within 100m of an Item, and is not within a heritage conservation area. The proposed works do not affect any known archaeological or Aboriginal objects or Aboriginal places of heritage significance.

Ku-ring-gai Development Control Plan

Section C

Part 24 – Water management

The proposed development has been designed to manage urban stormwater as per the requirements of the KDCP. Refer to engineering comments.

Development Control	Proposed	Complies
Part 21 General Site Design		
21.1 – Earthworks and slope		
Development considers site topography, drainage, soli landscapes, flora, fauna and bushfire hazard by: • Stepping buildings down the site • Locate finished ground level as close to the natural ground level as practicable • Level changes to occur primarily within building footprint • Minimum 0.6 metres width between retaining walls	The proposal is acceptable as approved by DA0038/23.	**As approved**

• Maintain existing ground level within 2 metres from any boundary • Limit slope for embankments to 1:6 (grassed) and 1:3 (soil stabilising vegetation) • No fill and excavation within sensitive environments • Minimise altered groundwater flows		
21.2 – Landscape Design		
Appropriate and sensitive site planning and design Existing appropriate screen planting is retained	Inappropriate landscape design.	**NO**
Part 22 - General access and parking		
22.1 – Equitable Access		
Compliance with DDA demonstrated Entry access ramps located within the site and does not dominate the front façade Access ways for pedestrians and for vehicles are separated.	Satisfactory	**YES**
Residential only Multi Dwelling Housing, Residential Flat Buildings and Shop Top Housing within Mixed Use developments provide access to, and between, dwellings and parking in accordance with the Livable Housing Guidelines as stipulated in Part 6 Multi Dwelling Housing, Part 7 Residential Flat Buildings and Part 8 Mixed Use Development.	Complies.	**YES**
22.2 – General vehicle access		
• Minimise width and number of vehicle access points • Access driveways set back at least 10 metres from street intersections and 3 metres from pedestrian entrances • Vehicle and pedestrian access to buildings clearly distinguished and separated. Vehicle access is to be located a minimum of 3 metres from pedestrian entrances.	Satisfactory.	**YES**

• Vehicle crossing width is acceptable for intensity of use proposed • Vehicles must exit in a forward direction • Vehicle entries are integrated into the external façade and are finished in a high-quality material • Retaining walls associated with driveways maximum height of 1.2 metres • No driveways are longer than 30 metres unless a passing bay is provided		
22.3 – Basement car parking		
Logical and efficient basement design AS2890.1	Complies	**YES**
Appropriate ceiling floor to ceiling heights and ventilation provided: • 2.5 metres for parking area for people with a disability; • 2.6 metres for residential waste collection and manoeuvring area • 4.5 metres for commercial waste collection and manoeuvring area	Complies.	**YES**
Basement is fully tanked.	Basement is not tanked. Condition 23 of DA0038/23 requires the basement to be fully tanked unless ongoing dewatering will be less than 3ML/year and the proposal is approved by NSW DPI Office of Water.	**NO (per existing approval)**
Unimpeded access to visitor parking and waste recycling rooms.	Complies.	**YES**
Ventilation grilles and screening devices are integrated into the landscape design.	Complies.	**YES**

Vehicles access ways are not in close proximity to doors and windows of habitable rooms	Satisfactory.	**YES**
Safe and accessible intercom access provided.	Can be conditioned if the application is to be approved.	**YES**
22.4 – Visitor parking		
Visitor parking located behind a security grille with an intercom system to gain entry. At least one visitor space is accessible and designed in accordance with AS2890.6	Complies.	**YES**
22.5 – Parking for people with a disability		
Accessible spaces are signposted and have a continuous path of travel to the principal entrance or a lift.	Complies.	**YES**
22.6 – Pedestrian Movement within Car Parks		
Pathways designed in accordance with AS1428.1	Complies.	**YES**
Marked pedestrian pathways have clear sightlines, appropriate lighting, are visible, conveniently located and constructed of non-slip material.	Complies.	**YES**
22.7 – Bicycle Parking and facilities		
Bicycle parking and storage facilities satisfy AS2890.3	Satisfactory.	**YES**
Bicycle access paths have a minimum width of 1.5 metres.	Satisfactory.	**YES**
Part 23 – Building Design and Sustainability		
23.3 – Sustainability of Building Materials and 23.4 – Materials and Finishes		
External walls constructed of high quality and durable materials.	Satisfactory	**YES**
Use of materials and colours creates well-proportioned facades and minimises visual bulk.	Satisfactory	**YES**

23.5 – Roof Terraces and Podiums		
Podiums and roof terraces are trafficable and support landscaping.	Satisfactory	**YES**
23.6 – Building Services		
Services and related structures are appropriately located to minimise streetscape impact.	Services are not adequately integrated.	**NO**
Air-conditioning units are well screened and do not create adverse noise impacts.	Satisfactory	**YES**
23.7 – Acoustic Privacy		
Design minimises impact of internal and external noise sources.	Insufficient information.	**NO**
Noise levels associated with air conditioning, kitchen, bathroom, laundry ventilation, or other mechanical ventilation systems and plant either as an individual piece of equipment or in combination shall not be audible within any habitable room in any residential premises before 7am and after 10pm. Outside of these restricted hours noise levels associated with air conditioning, kitchen, bathroom, laundry ventilation, or other mechanical ventilation systems and plant either as an individual piece of equipment or in combination shall not emit a noise level greater than 5dB(A) above the background noise (LA90, 15 min) when measured at the boundary of the nearest potentially affected neighbouring properties. The background (LA90, 15 min) level is to be determined without the source noise present.	Insufficient information.	**NO**
23.8 – Visual Privacy		
Visual privacy maintained for occupants and for neighbouring dwellings.	Visual privacy not maintained.	**NO**
23.9 – Construction, Demolition and Disposal		
Satisfactory Environmental Site Management Plan.	Provided.	**YES**

Ku-ring-gai Contributions Plan 2010

If the application were recommended for approval contributions would be payable per the requirements of this plan.

Housing and Productivity Contribution

A condition requiring payment of these contributions would be required, were the application to be approved.

The HPC cannot be determined as the allocation of 2% in perpetuity of affordable housing has not been specified in the application documentation.

REGULATION

If the application were recommended for approval a condition requiring that demolition works be in accordance with *Australian Standard AS 2601-2001: The demolition of structures* would be recommended.

LIKELY IMPACTS

The likely impacts of the development have been considered within this report and are deemed to be unacceptable.

SUITABILITY OF THE SITE

The site is not suitable for the proposed development.

PUBLIC INTEREST

The public interest is best served by the consistent application of the requirements of the relevant Environmental Planning Instruments, and by the Panel ensuring that any adverse effects on the surrounding area and the environment are minimised. The proposal has been assessed against the relevant environmental planning instruments and is deemed to be unacceptable as detailed throughout the report and recommended reasons for refusal.

CONCLUSION

Having regard to the provisions of Section 4.15 of the Environmental Planning and Assessment Act 1979, the proposed development is unsatisfactory for the reasons advanced in the recommendations of this report.

RECOMMENDATION

PURSUANT TO SECTION 4.16(1) OF THE ENVIRONMENTAL PLANNING AND ASSESSMENT ACT, 1979

THAT the Ku-ring-gai Local Planning Panel, exercising the functions of Ku-ring-gai Council, as the consent authority, pursuant to Section 4.16 of the Environment Planning and Assessment Act 1979, refuse development consent to eDA0371/25 for alterations, additions and associated works to an approved residential flat building (amending Development Application to DA0038/23) under the provisions of SEPP (Housing) 2021 on land at 26-30 McIntyre Street Gordon, for the following reasons:

1. The gross floor area of the development does not comply.

The proposed gross floor area (GFA) does not comply and the maximum floor space ratio (FSR) for the proposal has not been calculated in accordance with Section 16 of SEPP (Housing) 2021.

Particulars:

a) The SEE states that the maximum floor space ratio is 2.64:1 applying a GFA uplift of 20% based on a 10% affordable housing component.
b) The maximum GFA / FSR is shown on DA400, issue A, as 9114.1m^2 / 2.712:1.
c) DA000, issue A nominates the affordable housing GFA as 872.8sqm. The affordable housing GFA of 872.8sqm is less than 10% (911.4sqm of the total GFA).
d) The proposal is not subject to an uplift in FSR under Section 16(2) of SEPP (Housing) 2021 as the affordable housing component is less than 10% of the total GFA.
   16 (2) The minimum affordable housing component, which must be at least 10%, is calculated as follows—
e) The GFA calculation diagrams are incorrect in the following ways:
   a. the thickness of walls to common vertical circulation such as lifts and stairs (where not external) and the thickness of walls to risers, which should be included in the calculation of GFA. i.e. this has been excluded on basement levels 1 and 2, building B fire stair
   b. level 2 northern foyer what appears to be voids for services have been included as GFA.
   c. 'shaded' areas of GFA do not follow wall alignments, i.e. level 6 plan
f) Development consent cannot be granted as the proposal does not comply with the maximum floor space ratio development standard. A request to vary the development standard pursuant to clause 4.6 'Exceptions to development' standards of Ku-ring-gai LEP 2015 has not been provided.

2. Non-Compliant Building Height, Insufficient Information to Demonstrate the Extent of Non-Compliance, and Unsatisfactory Clause 4.6 Variation Request

The proposed building height is unclear. The non-compliant building height is not supported by a well-founded Clause 4.6 Variation Request to Section 18(2) of SEPP Housing.

Particulars:

a) In accordance with Section 175 (2) of SEPP Housing the site is subject to a maximum building height of 22 metres. Section 16(3) permits additional building height of up to 30% (6.6 metres) only if affordable housing is at least 15% of the overall gross floor area, this results in a maximum building height of 28.6 metres.
b) In this case the extent of GFA and proposed affordable housing is unclear and therefore the permitted maximum building height in accordance with Section 18(2) of SEPP housing is unclear.
c) The Clause 4.6 variation has stated that the building has a maximum height of 30.48 metres with a breach of (at least) 4.08m. It further states that the maximum building height permitted is 26.4 metres (which includes an additional 20%). This is inconsistent with the height plane diagram DA402 Issue A which identifies a maximum breach of 3.03 metres.
d) The building height diagram does not include RL's to all elements such as privacy screens and ground level RL's to demonstrate the proposed building height. Accordingly, the full extent of non-compliance cannot be determined.

e) Absent detailed plans demonstrating the proposed building height from existing ground levels, the full extent of impact arising from the non-compliance cannot be determined.

(f) The Clause 4.6 written request submitted in support of the variation is unsatisfactory as it fails to demonstrate that strict compliance with the height control is unreasonable or unnecessary, or that sufficient environmental planning grounds exist to justify the contravention of the standard.

(g) The written variation request seeks to demonstrate that the proposal is consistent with the overarching aims of SEPP Housing and the aim of chapter 6. These aims do not expressly relate to building height. Clause 4.3 (1) in KLEP, contains specific building height objectives. In this regard, the Clause 4.6 variation request is unacceptable as it has not considered the relevant objectives of the development standard.

3. Desired future character

The proposal is inconsistent with the desired future character, contrary to Section 20(3) of SEPP Housing.

<u>Particulars:</u>

a) Section 20(3) of SEPP Housing provides that ‘development consent must not be granted to development under this division unless the consent authority has considered whether the design of the residential development is compatible with:

   i. … for precincts undergoing transition, the desired future character of the area’.

b) Council’s draft alternative planning controls, which have been adopted by Council and forwarded to the Department of Planning for endorsement (TOD Alternative Scheme), envisage a future character which permits a maximum building height of 29 metres and FSR of 1.8:1. Notwithstanding the TOD Alternative Scheme is in draft form, they should be taken into consideration in the assessment of the Development Application.

c) The proposal is not compatible with the desired future character of the precinct because:

   i. The stated maximum building height is 30.48 metres. This exceeds the maximum building height of 26.4m under SEPP Housing. It also exceeds the future height control under the alternate scheme. The areas that exceed the maximum building height plane contribute towards the overshadowing of neighbouring properties at 29-33 Dumaresq Street, 35-39 Dumaresq Street and 27 Dumaresq Street (on its own, or possibly with redevelopment of 23-25 Dumaresq Street). The proposed 8 storey residential flat building will have an impact on adjoining properties and is not capable of existing in harmony together with the adjoining development.

   ii. ‘Compatibility’ under SEPP Housing section 20 also requires consideration of physical impacts including overshadowing and constraining development potential.

   iii. Insufficient deep soil landscaping resulting in adverse visual and residential amenity impacts.

4. Solar access

The proposed development does not provide adequate solar access to neighbouring properties or the site inconsistent with Housing SEPP and the objectives and design criteria of the ADG and KDCP.

<u>Particulars:</u>

(a) The ADG controls for solar access requires apartment development to receive solar access over the life cycle of the development.
   a. ADG 3B-2 (1) requires living areas and private open space of neighbouring properties to receive solar access to 70% of dwellings.
   b. ADG 3B-2 (2) requires solar access to living rooms and private open spaces of neighbours to be considered.
   c. ADG 3B-2 (4) requires building separation to be increased beyond minimums if the proposal will significantly reduce the solar access of neighbours, and
   d. ADG 3B-2 (5) requires overshadowing to the south and down-hill to be minimised by increased upper-level setbacks.
   e. 7A.2 (11) of KDCP states overshadowing should not compromise the development potential of the adjoining yet to be redeveloped sites.

(b) The In-fill Affordable Housing Practice Note (p11) states: 'The full extent of the in-fill affordable housing bonuses may not be achieved on all sites, due to site constraints and local impacts. The in-fill affordable housing bonuses should not be treated as an entitlement'.

(c) The proposal reduces existing levels of solar access to 29-33 Dumaresq Street to 19 of 35 (54%) units and reduces existing levels of solar access to 35-39 Dumaresq Street to 24 of 40 (60%) units inconsistent with ADG 3B.2 (1), (2), (4) and (5).

(d) Insufficient consideration has been given to the potential for the proposal to overshadow the redevelopment of the single residence at 27 Dumaresq Street (on its own, or possibly with redevelopment of 23-25 Dumaresq Street) which may constrain its development potential inconsistent with the Practice Note and KDCP 7A.2 (11).

(e) The proposed principal usable part of the communal open space located on Level 6 of Building A does not receive a minimum of 2 hours direct sunlight to a minimum 50% of its area between 9am and 3pm on 21 June. This does not meet the requirements of ADG 3D-1 (1) and KDCP 7C.2 (8).

5. SEPP Housing Design Principles

The proposed development is unsatisfactory when having regard to the Design Principles under the Housing SEPP and the objectives and design criteria of the ADG, as well as related provisions within KDCP.

<u>Particulars:</u>

(a) The proposed principal usable part of the communal open space located on Level 6 of Building A cannot be directly or equitably accessed from the units in Building B which accommodates 14 of 53 (26%) units in the development. This is contrary to 3D-1 (6) of the ADG and 7C.2 (3) of KDCP.

(b) The development does not achieve the minimum building separation distances required by the Design Criteria to Part 3F of the ADG.
   a. The proposal has habitable room windows setback 6m from the southern boundary at the fifth to eighth storeys of Building B (units B401, B402, B501, B502, B601, B602). This is contrary to 3F-1 (1) of the ADG that requires a minimum of 9 metres setback for the fifth to eighth storeys. This may unreasonably constrain the redevelopment of 27 Dumaresq Street to redevelop

to a similar scale on its own, or potentially with 23-25 Dumaresq Street (12 strata dwellings) contrary to objective 3F-1 (1) of the ADG which seeks to equitably share building separation distances between neighbouring sites.

b. The proposal has balconies and habitable room windows set back 6 metres to approximately 7.5 metres from the northern return boundary at the fifth to eighth storeys which is inconsistent with 3F-1 (1) of the ADG which requires a minimum 9 metres setback for the fifth to eighth storeys.

c. The proposal has habitable room windows set back 6 metres from the long eastern boundary at the fifth storey (units A401, A402, A403, A404), and balconies setback 6 metres from the eastern boundary at the sixth storey (units A501, A502, A503). This is inconsistent with 3F-1 (1) of the ADG which requires a minimum 9 metres setback for the fifth and sixth storeys.

d. The proposed building separation between balconies and habitable windows/balconies across the corner between Building A and Building B at Levels 1 to 5 is approximately 4.5 metres and does not meet the requirements of 3F-1 (1) of the ADG which requires a minimum of 12 metres separation for the first four storeys, and 18 metres separation for the fifth and sixth storeys. This also does not meet the requirements of ADG 3F-1 (6) for direct lines of sight to be avoided across corners.

e. The proposed windows to bedroom 1 and bedroom 2 of Unit A602 are not sufficiently separated from the principal usable part of the communal open space on Level 6 of Building A and does not meet the requirements of 3F-2 (1) of the ADG.

(c) Several proposed units do not appear to have screening between balconies (units A501, A502, A503, A601, A603, A701, A702). This does not meet the requirements of 3F-2 (5) of the ADG which requires screening between adjacent balconies.

(d) The proposal does not provide a building entry visible from the public domain and fails to meet the requirements of 3G-1 (1), 3G-1 (2) and 3G-1 (4) of the ADG and Part 7C.5 (2)(ii) of KDCP which requires clear sight lines to the primary street address and pathways to secondary building entries, entries which activate the street edge and relate to the street and subdivision pattern.

(e) The proposed living room balconies to several 3 bedrooms and 4 bedrooms units are less than 12m2 and/or less than 2.4 metres wide (units A301, A302, A303, A304, A305, A401, A402, A403, A404, A405, A502, A503, A601 and A603). This does not meet the requirements of 4E-1 (1) of the ADG for primary balconies of 3+ bedroom apartments to be a minimum area of 12m^2 and a minimum depth of 2.4 metres wide.

(f) In some instances, primary balconies are not located adjacent to the living room, dining room or kitchen to extend the living space inconsistent with ADG 4E-2 (1).

(g) The proposed bedroom balconies to several units are deeper than they are wide (units A104 (and typicals over), A105 (and typicals over), and A602) inconsistent with the requirements of 4E-2 (3) of the ADG.

(h) Many proposed common circulation corridors are internalised (Building A Level 5 and 7 and Building B Level 1 to 6). This does not meet the requirements of 4F-1 4 of the ADG which requires daylight and natural ventilation to be provided to all common circulation spaces.

(i) The proposed facades of Building B, particularly the southern rear facade which will be visible from Dumaresq Street, are large and flat and relatively unarticulated. This does not meet the requirements of Part 7C.6 (2) of KDCP which requires no single wall plane to exceed 81m^2 in area, the requirements of KDCP 7C.6 (3)(i) to avoid large flat walls, and the requirements of KDCP 7C.6 (11) for facades to be articulated with wall planes varying in depth by not less than 0.6 metres supplemented with architectural elements.

(j) The proposed top storey of Building A is larger in gross floor area than the storey immediately below. This does not meet the requirements of Part 7C.8 (1) of KDCP for the top storey to not exceed 60% of the gross floor area of the storey immediately below.

(k) The proposed top storey of Building A and the top storey of Building B are not set back a minimum of 2.4 metres from the outer face of the floors below on all sides. This does not meet the requirements of Part 7C.8 (2) of KDCP.

(l) The proposed southern mechanical plant room / screens on Level 6 of Building A is not considered to be integrated into the building design and will be visible from surrounding development. This is inconsistent with the requirements of 7C.8 (4) of KDCP which requires service elements to be integrated into the overall design of the roof and ADG 4M-1 (2).

(m) When considered cumulatively, the failure to achieve compliance with the ADG demonstrates the inability of the proposal to satisfy the Design Principles under Schedule 9 of SEPP, in particular:

- Principle 1: Context and neighbourhood character
- Principle 2: Built form and scale
- Principle 3: Density
- Principle 4: Sustainability
- Principle 5: Landscape
- Principle 6: Amenity
- Principle 8: Housing diversity and social interaction
- Principle 9: Aesthetics

6. Affordable housing units

The residential amenity to the affordable housing units is unsatisfactory and inequitable.

Particulars:

(a) The In-fill Affordable Housing Practice Note (p15) states, 'Residential amenity is one of the design quality principles under Chapter 4 of the Housing SEPP that must be considered in the assessment of residential apartment development. Good residential amenity (includes)… access to sunlight… It is important that amenity is maximised across a development, and that affordable dwellings are not subject to a lower standard.

(b) Eight proposed units are nominated as being affordable (units LG03, LG01, LG02, AG06, BG01, BG02, B102 and B202). Three of eight affordable units (38%) appear to receive a minimum of 2 hours direct sunlight to both living rooms and private open spaces between 9am and 3pm at mid-winter. Five of eight (62%) affordable units appear to receive no direct sunlight between 9am and 3pm at midwinter.

(c) The solar access of dwellings nominated as being affordable is significantly less than the building overall and do not meet the requirements of 4A-1 (1) and 4A-1 (3) of the ADG in their own right and is considered to be inequitable.

7. Accessibility

The proposed development does not provide suitable access within the building inconsistent with the Livable Housing Design Guide (LHDG), the Apartment Design Guide (AGD) and the National Construction Code (NCC).

Particulars:

(a) The corridor to unit A601 is less than 1 metre wide and is inconsistent with Element 3 of LHDG.

(b) The central entry ramp to Building A is less than 1.2 metres wide and is inconsistent with Element 1 LHDG.

(c) Most proposed common circulation corridors have portions that are less than 1.5 metres wide [DA205A to DA211A]. This does not meet the requirements of 4F-1 (3) 4F-2 (2) of the ADG. This may also not meet the requirements of NCC D4D2(4)(c)(i) for common areas to be accessible to the entrance doorway of each sole-occupancy unit.

8. Site coverage and deep soil landscape area

The proposed development does not comply with the minimum deep soil landscape area or site coverage, resulting in adverse visual and residential amenity impacts.

Particulars:

(a) Control 1 in Part 7A.6 of KDCP requires a minimum deep soil landscape area of 50% of the site area which is to be provided within common areas only. The stated deep soil landscaping area is 1,572.8m2 or 46.8% however the plans do not accurately indicate all the non-compliant areas in accordance with the definitions listed in Part 1B.1 of the DCP, reducing deep soil to approximately 1540.5m2 (45.8%).

(b) The proposed site coverage is stated as being 42.2% This does not meet the requirements of Section 7A.5 (1) of KDCP, requiring a maximum site coverage of 30%. The calculation diagram incorrectly excludes the footprint of enclosed areas of upper-level floor plans.

(c) The development does not provide consolidated deep soil zones inconsistent with objective 2 of Part 7A.6 of KDCP which restricts growth of vegetation.

9. Inadequate BASIX certificate

The BASIX Certificate is not consistent with the plans for the proposed development.

Particulars:

a) The BASIX certificate states that 2.5sqm of garden and lawn is provided to Unit 504, however no garden and lawn for this unit is shown on the plans.

b) The BASIX certificate states that units A304 and A305 have no areas of garden and lawn, however the plans show planter boxes for these units.

10. Section 4.15(1)(b), (c), (d) and (e) of the *Environmental Planning & Assessment Act 1979* and the public interest

The development application should be refused because approval of the proposed development would not be in the public interest.

Particulars:

(a) The public interest is demonstrated by conformity with the applicable planning controls the subject of other contentions hereto.

(b) The public interest also is demonstrated by matters which have been raised by the objectors.

(c) The development application should be refused having regard to the matters listed in section 4.15(1) (a)(iii)(iv), (b), (c), (d) and (e) of the Act as detailed in the objectors' submissions in Part A hereto where they are consistent with the contentions.

11. Insufficient ecological assessment

Particulars:

a) No ecological impact assessment (5-part test) has been provided in accordance with Section 7.3 of the Biodiversity Conservation Act 2016 (BC Act).
   i. Section 7.3 of the BC Act requires a Test of Significance to be undertaken to determine whether a proposed development is likely to significantly affect threatened species, populations, or ecological communities, or their habitats.
   ii. The submitted material does not include this mandatory assessment and therefore fails to demonstrate that the ecological impacts of the proposal have been properly considered under the BC Act.

b) The previously approved Development Application DA0038/23 was supported by a Biodiversity Assessment Report (BAR) prepared by Travers Environmental, which identified the Plant Community Type (PCT 1237) corresponding with Blue Gum High Forest, a Critically Endangered Ecological Community (CEEC) under the BC Act.
   i. The presence of this listed ecological community on the site reinforces the requirement for a BAR to accompany this new application.

c) In the absence of a Test of Significance, the application fails to adequately assess or quantify biodiversity impacts, resulting in non-compliance with Sections 7.2 and 7.3 of the *Biodiversity Conservation Act 2016* and the *Biodiversity Conservation Regulation 2017*.

12. The submitted landscape plan is inadequate

Particulars:

a) The landscape plan is to be amended in accordance with Part 17.4 – Category 3: Bed and Bank Stability of the Development Control Plan (DCP). The following issues are to be addressed:

b) Open space treatment within the riparian corridor is inconsistent with the objectives and controls of Part 17.4 of the DCP.
   i. Open space within the riparian area is to be limited to a soft landscape walking track with seating, ensuring the protection, stability, and ecological function of the riparian zone are maintained in accordance with the bed and bank stability provisions of Part 17.4.

c) Proposed planting within the riparian corridor must comply with the relevant controls under Part 17.4 of the DCP, including:
   i. Control 7, which requires planting within the channel and within two metres of the top of the bank to comprise 100% locally native species representative of the relevant vegetation community, with an appropriate mix of groundcovers, shrubs, and trees; and
   ii. Control 8, which requires planting within Category 3 lands (more than two metres from the top of the bank) to consist of not less than 70% locally native trees and 30% locally native understorey species, with monocultures excluded.

d) The proposed planting must reflect the local riparian plant community type, and species selection is to be certified by a suitably qualified ecologist as being of local provenance and consistent with the vegetation community to be restored within the riparian area.

13. Inadequate information regarding affordable housing

There is insufficient detail to confirm compliance with Section 21 of SEPP Housing.

Particulars:

a) Section 21 of SEPP Housing states that development consent under Part 2, Division 1 of SEPP Housing must not be granted unless the consent authority is satisfied that for a period of 15 years commencing on the day the Occupation Certificate is issued, the development will include the affordable housing component required under Sections 16, 17 or 18 and the affordable housing component will be managed by a registered community housing provider.

b) A statement has not been provided addressing Section 21 of the SEPP.

14. Inadequate information regarding acoustic impacts

The submitted acoustic impact assessment contains errors and inconsistencies.

Particulars:

(a) The acoustic report prepared by Acouras Consultancy dated 8 July 2025 states that air-conditioning condensers will be located in plantrooms on Basement Levels 1–4, as well as within a rooftop plantroom screened by acoustic louvres. The acoustic report also refers to architectural plans dated 17 April 2025.
(b) The architectural plans provided with the application are dated 25 August 2025 and do not identify any plantrooms on Basement Levels 1–4. Instead, the plans show approximately 38 condenser units located on the rooftop, surrounded by 1100 mm high louvres, with no provision for basement plant.
(c) This inconsistency makes it difficult to confirm whether the acoustic engineer assessed the current proposal and satisfactorily was able to conclude compliance with the relevant noise criteria and Council's DCP requirements.

15. Architectural plans, survey and related information

Particulars:

(a) There are no areas identified for clothes drying as required by Part 7C.9 (1) and (2) of KDCP and Part 4U of the ADG.
(b) No information is provided to depict how services are well integrated into the design of the development.
(c) Identify garden maintenance storage is provided in accordance with Part 7C.2 of KDCP.
(d) Apartment LG02 balcony states 'external louvres for fresh air to basement'.
(e) Mechanical certification has not been provided to demonstrate that the nominated area/plantroom will be large enough to accommodate the number of proposed condenser units, that the likely required supply/extraction air flow within the plant room have been sufficiently incorporated into the basement design and that there is sufficient service ducting incorporated into the development so that the systems operate efficiently.
(f) Privacy louvres should be indicated on the floor plans.
(g) Dimensions are not provided to all edges of the building, for example western elevation.